



CHAPTER clxix.

An Act to confirm a Provisional Order under the Private A.D. 1913.
Legislation Procedure (Scotland) Act 1899 relating to
Kirkcaldy District Water. [14th February 1913.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Kirkcaldy District Water Order Confirmation Act 1913. Short title.

A.D. 1913.

S C H E D U L E.

KIRKCALDY DISTRICT WATER.

Provisional Order to transfer to and vest in the County Council of the county of Fife and their Kirkcaldy District Committee certain powers conferred on the Wemyss and District Water Trustees by the Wemyss and District Water Order 1910 to authorise the said County Council and District Committee to exercise such powers and construct waterworks and supply water within their district and to empower the said County Council for such purposes to acquire lands and servitudes to levy assessments and borrow money and for other purposes.

WHEREAS the County Council of the county of Fife (herein-after called "the County Council") are by the Local Government (Scotland) Act 1889 (herein-after called "the Act of 1889") empowered to acquire and hold lands and to raise money by rate or loan for the purposes of the Public Health Acts as herein-after defined :

And whereas the county of Fife has for the purposes of the administration therein of the laws relating to public health been divided into districts in accordance with the provisions of the Act of 1889 one of which districts (herein-after called "the Kirkcaldy District") comprises the parishes of Auchterderran Auchtertool Ballingry Burntisland Kennoway Kinghorn Kinglassie Kirkcaldy and Dysart Leslie Markinch Scoonie and Wemyss excepting the burghs of Lochgelly Buckhaven Methil and Innerleven Burntisland Kinghorn Kirkcaldy Dysart Leslie Markinch and Leven :

And whereas the Kirkcaldy District Committee of the County Council constituted under the provisions of the Act of 1889 (herein-after called "the District Committee") are the local authority for the execution of the Public Health Acts with respect to a supply of water for the domestic use of the inhabitants and for sanitary and other purposes within the Kirkcaldy District except with respect to acquiring or holding land rating and borrowing :

And whereas in the month of December one thousand nine hundred and eight the provost magistrates and councillors of the

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burgh of Buckhaven Methil and Innerleven applied for a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 for power amongst other purposes to incorporate a public trust for better supplying with water the parish of Wemyss including the burgh of Buckhaven Methil and Innerleven and districts and places adjacent to abolish the special water supply districts of Wemyss of Buckhaven Methil and Innerleven and of Windygates and Balcurvie to transfer the existing waterworks to the Trustees to be incorporated and to sanction the construction and maintenance of new and additional waterworks : A.D. 1913.

And whereas the County Council on behalf of the District Committee as representing that Committee opposed the application for the Order before the Commissioners to whom the consideration of the draft Order was referred on the ground (amongst other reasons) that owing to the magnitude of the interests of the District Committee in the water undertaking and the supply obtained therefrom the portion of the water undertaking defined in the said Order consisting of the works authorised thereby for appropriating and conveying water through the Kirkcaldy District other than so much thereof as is situate within the limits of compulsory supply under the said Order should be transferred to and vested in the County Council :

And whereas after inquiry the following section whereof the marginal note is "As to transfer of portion of water undertaking to County Council" was inserted in the draft Order namely :—

"In order that the County Council on behalf of the District Committee may have an opportunity if so advised of lodging an application with the Secretary for Scotland for a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 not later than the seventeenth day of April one thousand nine hundred and twelve for the transfer to and vesting in the County Council of the part of the water undertaking consisting of the works authorised by this Order for appropriating and conveying through the district of the District Committee other than so much thereof as is situate within the limits of compulsory supply under this Order the waters of the streams called the River Farg Miln Burn Plains Burn and Slateford Burn on

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such terms and in such manner as Parliament may determine the powers contained in this Order with regard to the said part of the water undertaking shall not except with the consent of the County Council be exerciseable until the lapse of two years from the commencement of this Order”:

And whereas the said Order containing the aforesaid provision and other amendments was made under the title of the “Wemyss and District Water Order 1910” (herein-after called “the Order of 1910”) and the same was confirmed by the Wemyss and District Water Order Confirmation Act 1910:

And whereas the Wemyss and District Water Trustees incorporated under the Order of 1910 (herein-after called “the Trustees”) have not constructed any of the works mentioned in the above-recited section except so much of the Conduit No. 2 described in section 30 of that Order as is situate between its termination and Carriston Reservoir:

And whereas it is expedient in the interests of the inhabitants of the Kirkcaldy District that subject to the provisions of this Order certain of the rights powers authorities privileges and obligations of the Trustees under the Order of 1910 and the portion of their water undertaking referred to in the said section of the Order of 1910 should be transferred to and vested in the County Council and that the District Committee should be authorised to construct certain of the works authorised by that Order:

And whereas it is expedient that in addition to the construction of such works the District Committee should be empowered to construct the waterworks and the temporary tramroad herein-after described and to supply water and exercise such other powers in that behalf as are in this Order provided:

And whereas it is expedient that the County Council should for the purposes of the said water supply to be afforded by the District Committee be authorised and empowered to acquire and hold lands for the purposes of the construction thereon by the District Committee of the said works and for the other purposes of the undertaking:

And whereas certain portions of the county of Fife within the Kirkcaldy District were formed into special water supply districts known as the special water supply districts of Thornton Kinglassie and Coaltown of Balgonie and it is expedient that

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such districts should at such periods and subject to such conditions as are by this Order provided cease to exist as special water supply districts and to be rated and assessed for the purposes of water supply separately from other portions of the Kirkcaldy District and that the whole waterworks mains pipes plant and apparatus situate within or used exclusively for supplying the said several water supply districts so ceasing to exist should be transferred to the County Council and be maintained and used by the District Committee as part of the water undertaking by this Order authorised: A.D. 1913.

And whereas it is expedient that the County Council should be authorised and required to levy assessments and charges in respect of the lands waterworks and water supply by this Order authorised to be acquired and provided:

And whereas it is expedient that the County Council should be authorised to borrow on the security of assessments leviable by them such moneys as may be necessary for the purposes of this Order:

And whereas estimates of the cost of certain of the works authorised by the Order of 1910 which the District Committee are by this Order authorised to construct have been prepared showing that the County Council will or may require to borrow the following sums (that is to say):—

For permanent works:—	£
Purchase of lands and servitudes - - -	13,900
Storage reservoirs - - - - -	36,500
Service reservoirs tanks and filters - - -	15,000
Trunk conduits mains and catchwaters - - -	81,525
Roads of access - - - - -	3,000
For subsidiary works - - - - -	5,000

And whereas estimates have also been prepared showing that the County Council will or may require to borrow for the purposes of the additional works by this Order authorised the following sums (that is to say):—

For permanent works:—	£
Purchase of lands and servitudes - - -	1,500
Service reservoir tank and pumping station - - -	9,700
Trunk conduits and mains - - - - -	3,650
Road of access - - - - -	830
For subsidiary works and tramroad - - -	18,620

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And whereas it is expedient that the cost thereof should be spread over a term of years :

And whereas plans and sections showing the lines and levels of the several works authorised by this Order and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the several purposes or under the powers of this Order were duly deposited with the principal sheriff clerks of the counties of Fife and Perth and are herein-after respectively referred to as "the deposited plans sections and book of reference" :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

PRELIMINARY.

Short title.

1. This Order may be cited for all purposes as the *Kirkcaldy District Water Order 1913.*

Commencement of Order.

2. This Order shall commence and have effect on and from the date of the passing of the Act confirming the same which date is herein-after referred to as "the commencement of this Order."

Interpretation.

3. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts or the Act of 1889 have the same respective meanings unless there be something in the subject or context repugnant to such construction In this Order and in the Acts wholly or partially incorporated with this Order—

"The county" means the county of Fife ;

"The County Council" means the county council of the county ;

"The District Committee" means the *Kirkcaldy District Committee of the County Council* ;

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- "The Kirkcaldy District" means the parishes of Auchterderran Auchtertool Ballingry Burntisland Kennoway Kinghorn Kinglassie Kirkcaldy and Dysart Leslie Markinch Scoonie and Wemyss exclusive of the burghs of Lochgelly Burntisland Kinghorn Kirkcaldy Dysart Leslie Markinch Leven and Buckhaven Methil and Innerleven; A.D. 1913.
- "The Public Health Acts" means the Public Health (Scotland) Acts 1897 to 1907 and any Act amending the same;
- "The Act of 1889" means the Local Government (Scotland) Act 1889 and any Act amending the same;
- "The standing joint committee" means the standing joint committee of the County Council and the commissioners of supply of the county appointed in pursuance of the Act of 1889;
- "The special Act" means this Order;
- "Valuation roll" means the valuation roll for the county made up in terms of the Lands Valuation (Scotland) Act 1854 and any Act amending the same;
- "The sheriff" means the sheriff of Fife and Kinross or the sheriff of Perth as the case may be and includes their substitutes respectively;
- "The undertakers" "the company" and "the promoters of the undertaking" mean respectively the District Committee and the County Council as the case may be;
- "The tramroad" means the tramroad by this Order authorised;
- "The undertaking" shall comprehend that part of the undertaking of the Trustees transferred to the County Council and the District Committee in pursuance of the provisions of this Order and the lands servitudes waterworks tramroad and other works authorised to be acquired or constructed by the County Council and the District Committee under this Order;
- "The Order of 1910" means the Wemyss and District Water Order 1910;
- "The Trustees" means the Wemyss and District Water Trustees incorporated by the Order of 1910; and

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“The deposited plans sections and book of reference of 1910”
mean respectively the plans sections and book of refer-
ence deposited in respect of the Order of 1910.

Incorpora-
tion of
Acts.

4. The following Acts and parts of Acts (so far as the same
are not inconsistent with the provisions of this Order) are hereby
incorporated with and form part of this Order:—

The Lands Clauses Acts:

The Waterworks Clauses Act 1847 except the sections and
provisions thereof with respect to—

(a) the communication pipes within the limits of
supply to be laid by the undertakers;

(b) the amount of profit to be received by the under-
takers when the waterworks are carried on for their
benefit; and

(c) also except sections 68 70 71 and 72:

The Waterworks Clauses Act 1863:

The Railways Clauses Consolidation (Scotland) Act 1845
except the provisions thereof with respect to the carrying
of passengers and goods upon the railway and the tolls to
be taken thereon and Part I. (Construction of a railway) of
the Railways Clauses Act 1863 Provided always that the
provisions of these Acts as incorporated with this Order
shall apply only to the reservoirs and embankments autho-
rised by the Order of 1910 and the works immediately
connected therewith authorised by this Order to be con-
structed by the District Committee and to the tramroad
and that in construing such provisions for the purposes
of this Order the expressions “the company” means the
District Committee “the railway” means the before-
mentioned works and “the centre of the railway” means
part of those said works:

Sections 27 29 31 32 33 41 46 47 55 57 and 59 to 64 of
the Tramways Act 1870 Provided that the said sections
shall apply only to such portions of the tramroad as are
laid along or across any public road.

TRANSFER OF CERTAIN POWERS OF THE TRUSTEES.

Transfer of
certain
powers of

5. Upon the commencement of this Order all the powers
rights privileges and authorities of the Trustees under or by virtue

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of the Order of 1910 as amended by this Order so far as relating to the acquisition of land and servitudes for and the construction and maintenance of the waterworks and the supply of water by the District Committee under this Order shall be transferred to and vested in the County Council and the District Committee subject except in so far as the same are varied by this Order to all obligations provisions and restrictions whatsoever to which the Trustees may be subject under the Order of 1910 with regard to the water undertaking so transferred and the Trustees shall thenceforth be relieved from all liability in connexion therewith and the County Council and the District Committee may subject to the provisions of this Order exercise and enjoy all the rights powers authorities and privileges hereby transferred to and vested in them in like manner in every respect as if they were the trustees but freed from all the provisions of the Order of 1910 regulating the constitution of and the assessing of water rates by the Trustees:

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 —
 Trustees
 under Order
 of 1910 to
 County
 Council and
 District
 Committee.

Provided that the provisions of the Order of 1910 shall so far as the same remain applicable to the Trustees and their limits of compulsory supply continue to apply and have effect and be exerciseable by them as if the Act confirming this Order had not been passed:

Provided further that if the waterworks authorised to be constructed by the Order of 1910 or by this Order are not commenced by the District Committee within two years from the commencement of this Order then on the expiration of that period the powers conferred upon the County Council and the District Committee in so far as the same relate to or affect the Trustees and the water undertaking authorised by the Order of 1910 shall cease.

6. The following sections of the Order of 1910 shall extend and apply to the undertaking as if the County Council and the District Committee for their respective rights duties and obligations under this Order had been mentioned therein instead of the Trustees Provided that any reference to the compulsory water limits or the limits of compulsory supply or to the water assessment or to the rate levied by the Trustees in any of the said sections shall for the purposes of this Order be read as respectively referring to the limits of supply or to the

Application
 of Order of
 1910 to
 County
 Council and
 District
 Committee.

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A.D. 1913. domestic water rate authorised and prescribed in this Order
(that is to say):—

Section 2 (Commencement of Order);

Section 3 (Interpretation);

Section 30 (Power to make works) with the exception of
the following works (that is to say) The
portion of the Conduit No. 2 situate between
its termination and Carriston Reservoir the
Conduit No. 4 the Catchwater No. 2 the
Intake No. 2 the Road of Access No. 2 the
Road of Access No. 3 and the Enlargement
No. 2 described in and authorised by that
section;

Section 34 (Power to open roads &c.);

Section 35 (Trustees may enlarge or increase number of
pipes);

Section 36 (Laying mains on public roads)

Section 39 (As to compensation water);

Section 40 (Limiting abstraction of water from Slateford
and Miln Burns);

Section 41 (Power to take lands);

Section 45 (Postal facilities);

Section 47 (For protection of Wemyss and District Tram-
ways Company Limited);

Section 49 (Power to agree for servitudes &c.);

Section 53 (For protection of reservoirs &c. from pollution);

Section 54 (Reservation of water rights on sale);

Section 55 (Power to agree as to drainage of lands);

Section 56 (Byelaws for preventing pollution of water);

Section 57 (Power to acquire servitudes only for lines of
pipes);

Section 58 (Power to acquire and hold lands for prevention
of pollution);

Section 59 (Power to discharge water temporarily into
streams);

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- Section 66 (For protection of trustees of late James A.D. 1913.
 Lawrence Boyd);
- Section 69 (Sale of portion of pipes within jurisdiction of
 other local authorities);
- Section 71 (Suspension of constant pressure during repairs
 &c.);
- Section 72 (Suspension of constant supply);
- Section 74 (Trustees may supply water for other than
 domestic purposes);
- Section 75 (Payment of charge for water supply);
- Section 76 (Contracts for supplying water in bulk);
- Section 80 (Confirming agreement with trustees of Alexander
 Beveridge) and the Eighth Schedule;
- Section 82 (Water for road &c. purposes);
- Section 85 (Penalty for taking water from public wells except
 for domestic use);
- Section 86 (Tube or hose not to be affixed to mains or pipes
 without consent of Trustees);
- Section 87 (Trustees not bound to supply several houses by
 one pipe);
- Section 88 (Notice of discontinuance);
- Section 89 (Supply to houses partly used for trade &c.);
- Section 90 (Power to sell or let meters);
- Section 91 (Notice to Trustees of connecting or disconnecting
 meters);
- Section 92 (Injuring meters &c.);
- Section 93 (Power to supply fittings);
- Section 94 (Power to lay pipes in streets not dedicated to
 public use);
- Section 95 (As to breaking up ground for maintaining
 communication pipes);
- Section 96 (Rent for water may be ascertained by meter).

7. The powers conferred on the Trustees by section 29 (Maintenance of existing waterworks) of the Order of 1910 to supply water beyond their limits of compulsory supply defined by section 68 of and the First Schedule to the said Order are hereby repealed and the powers conferred on the Trustees by section 77 (Supply of water by Trustees along line of pipes)

Repeal of powers of Trustees under sections 29 and 77 of Order of 1910 to supply water

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A.D. 1913. of the said Order shall subject to the provisions of this Order
beyond their limits of compulsory supply. apply only to a supply of water given by the Trustees along lines
of pipes situate within the said limits of compulsory supply or
beyond such limits with the consent of the District Committee.

CONSTRUCTION OF WORKS AND ACQUISITION OF LANDS.

Power to
District
Committee
to construct
works.

8. Subject to the provisions of this Order the District Committee may on the lands to be acquired by the County Council as herein-after provided make construct and lay down use and maintain in the lines and situations and according to the levels shown on the deposited plans and sections the works herein-after described.

Description
of works.

9. The works herein-before referred to and authorised by this Order will be situate in the counties of Fife and Perth and are—

In the county of Fife—

- (1) A conduit aqueduct or line or lines of pipes (Work No. 1) commencing in the parish of Auchterderran in the public road leading from Ballingry to Lochgelly at a point 530 yards or thereabouts measured in a northerly direction from the centre of the bridge crossing the said public road at Lochgelly Railway Station and terminating in the parish of Ballingry at a point in the public road leading from Cowdenbeath to Lochgelly 1000 yards or thereabouts measured in an easterly direction from the south-east corner of Leuchatsbeath Farm Steading:
- (2) A tank and pumping station (Work No. 2) wholly situate in the parish of Ballingry 300 yards or thereabouts measured in a southerly direction from the southern corner of Wester Cartmore Farm Steading:
- (3) A service reservoir (Work No. 3) wholly situate in the parish of Beath at a point on Craigbeath Hill 350 yards or thereabouts measured in a westerly direction from the westernmost corner of Leuchatsbeath Farm Steading:

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In the county of Perth—

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(4) A road of access (Work No. 4) wholly situate in the parish of Arngask commencing in the public road at a point immediately to the north-east of Abbots Deuglie Farm Steading and terminating at the Embankment No. 1 authorised by and described in section 30 of the Order of 1910:

(5) A tramroad (Work No. 5) (single line) 3 furlongs 3·2 chains or thereabouts in length wholly situate in the parish of Arngask and notwithstanding anything shown on the deposited plans and sections commencing by a junction with the westernmost siding of the North British Railway at a point 56 yards or thereabouts measured in a northerly direction from the centre of the goods shed at Glenfarg Station passing in part along the public road through the village of Glenfarg and terminating at or about Hayfield Mill on the eastmost boundary of the estate of Glendouglie:

The tramroad will for a distance of 16 chains 11 yards or thereabouts be laid upon a street or road and for the remainder of its length (16 chains 15 yards or thereabouts) on private lands.

10. The District Committee in addition to the foregoing works and the works to be constructed by them authorised by the Order of 1910 may upon or in the lands delineated on the deposited plans and the deposited plans of 1910 and described in the deposited book of reference and the deposited book of reference of 1910 make erect and maintain all such embankments dams overflows weirs byewashes bridges roads accesses approaches ways tramways tram-plates or lines of rails wells tanks basins gauges filter beds stand-pipes pumping stations sluices outlets outfalls drains discharge pipes washouts adits shafts tunnels aqueducts culverts cuts channels catchwaters conduits sewers drains mains junction pipes junctions valves air valves engines machinery houses buildings stations sidings gates communications telegraphs telephones posts wires apparatus and other works and conveniences as may be necessary or convenient in connexion with or subsidiary to the said works or any of them or necessary or convenient for the purposes of this Order and for inspecting altering cleansing managing maintaining and using those several

Power to
make subsi-
diary works.

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A.D. 1913. — works but nothing in this section shall exonerate the District Committee from any action interdict or other proceeding for nuisance in the event of any nuisance being caused or permitted by them:

Provided that any telegraphs telephones posts wires and apparatus and other works made erected or maintained by the District Committee shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Power to
take water.

11. Subject to the provisions of this Order the District Committee may by means of the works to be constructed by them authorised by the Order of 1910 or some of them or some part or parts thereof divert impound take appropriate store use and distribute the waters of the streams called the River Farg Plains Burn Miln Burn and Slateford Burn and all affluents streams springs and waters flowing into or arising within the said streams and the District Committee may from the said works to be constructed by them authorised by the Order of 1910 and the waterworks authorised by this Order or some of them supply water within the limits of supply and to such persons and places beyond the same as the District Committee are authorised by this Order to supply with water.

Power to
take lands.

12. Subject to the provisions of this Order the County Council may purchase acquire hold enter upon appropriate take and use such of the lands shown on the deposited plans and described in the deposited book of reference as may be required for the purposes of the works by this Order authorised.

Power to
District
Committee
to lay down
line of rails
on Access
Road
(No. 1)
authorised
by Order
of 1910.

13. The District Committee may on the access road (Access Road No. 1) authorised by the Order of 1910 lay down maintain work and use a line of rails in continuation of the tramroad and the District Committee shall after the completion of the storage reservoir (Reservoir No. 1) authorised by the Order of 1910 remove such line of rails in accordance with the provisions of subsection (1) of section 66 (For protection of trustees of late James Lawrence Boyd) of the Order of 1910.

Tolls &c.
not to be
taken in
respect of
tramroad.

14. The tramroad may be used for the purposes of the undertaking but the District Committee shall not take any tolls rates or charges in respect thereof or the traffic thereon nor shall the provisions of subsection (11) of the section of this Order whereof the marginal note is "For protection of Perth District

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Committee" in respect to the payment of tolls by the District Committee to the Perth District Committee apply to such traffic. A.D. 1913.

15. The tramroad shall be constructed on a gauge of not exceeding four feet eight and a half inches. Gauge of tramroad.

16. The tramroad shall form part of the undertaking of the District Committee and shall be used exclusively for the purposes thereof Provided that after the completion of the storage reservoir (Reservoir No. 1) by the Order of 1910 authorised the District Committee shall discontinue to use the tramroad and shall take up remove sell and dispose of the rails and materials used in the construction thereof. Tramroad to be used exclusively in construction of waterworks and to be removed after completion.

17. The District Committee and the road authority may enter into agreements with respect to the mode of constructing and the maintaining renewing repairing and using of such part or parts of the tramroad as shall be laid along or across any road situate within the district of such road authority and the repairing of the road along or across which the tramroad is laid. Agreements between District Committee and road authority.

18. The engines and carriages used on the tramroad and on the Access Road No. 1 authorised by the Order of 1910 may be moved by steam petrol or animal power. Motive power.

19. The District Committee shall if and when required by the local authority of the district in which the works by this Order authorised and the works to be constructed by the District Committee authorised by the Order of 1910 are situate (in this section called "the local authority") make provision to the satisfaction of the local authority for the proper housing and sanitary requirements of the persons employed in constructing the said works and for the treatment of cases of sickness (other than infectious disease) and accident occurring among the said persons during the construction of the said works In considering what provision ought to be made for the said purposes the local authority shall take into consideration the provision already available in the neighbourhood of or conveniently accessible from the said works. Accommodation for workmen &c.

In the event of any dispute arising between the District Committee and the local authority as to the amount or nature or situation of the housing accommodation or sanitary requirements to be provided or as to the sufficiency of the provision for the treatment of cases of sickness (other than infectious disease) and accident or as to the time within which such accommodation shall be provided and such provision made or as to the carrying

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A.D. 1913. out by the District Committee of any requirement of the local authority under this section either party may appeal to the Local Government Board for Scotland (in this section called "the Board") and the decision of the Board shall be final and binding on both parties:

Provided that if it appear to the Board at any time that sufficient provision for the aforesaid purposes is not made the Board shall have power to require the District Committee to make provision or additional provision therefor to the satisfaction of the Board.

In the event of the District Committee or the local authority failing to comply with any order or requirement of the Board under this section they shall be liable to a penalty not exceeding five pounds for every day during which such failure continues and such penalty shall be recoverable with expenses at the instance of the Lord Advocate on behalf of the Board in any competent Court.

For the purposes of this section the Board shall have the same powers of holding inquiries and of requiring reports to be made by local authorities and their officials as they have under the Public Health (Scotland) Act 1897 for the purposes of that Act and the provisions of the said Act relating to such inquiries and reports shall apply accordingly.

Agreements
between
District
Committee
and North
British
Railway
Company.

20. The District Committee on the one hand and the North British Railway Company on the other hand may enter into and carry into effect agreements with reference to the working use running over maintenance and management jointly or otherwise of the tramroad and the works connected therewith and the supply and maintenance by the working party under and during the continuance of any such agreement as aforesaid for the working of the tramroad of engines stock and plant necessary for the purposes of such agreement and otherwise in connexion with the working use maintenance or management of the tramroad and works.

Power to
County
Council
District
Committee
and Trus-
tees to enter
into agree-
ments.

21. The County Council and the District Committee or either of them on the one hand and the Trustees on the other hand may enter into and carry into effect agreements with respect to the construction use and maintenance of the conduit aqueduct or line of pipes (Conduit No. 2) and the filters and pure water tank (Work No. 13) authorised by and described in section 30 of the Order of 1910 and the apportionment between

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the respective parties to any such agreement of the cost of such construction and maintenance and such parties may apply their respective funds for the purposes of any such agreement. A.D. 1913.

22. Subject to the provisions of this Order the District Committee on the one hand and the Provost Magistrates and Councillors of the Burgh of Leven (herein-after in this section referred to as "the Corporation") the Waterworks Commissioners of Kirkcaldy and Dysart or the Trustees on the other hand may enter into and carry into effect agreements for or with respect to the following purposes or any of them and all matters incidental thereto (that is to say):—

- (A) The supply to the District Committee by the Corporation or such Waterworks Commissioners or the Trustees of water in bulk or otherwise or for the laying or acquisition of mains pipes or other works either within or beyond the limits of supply:
- (B) The supply by the District Committee out of any surplus water which may exist after supplying the needs within the limits of supply to the Corporation or such Waterworks Commissioners or the Trustees of water in bulk or otherwise or for the laying or acquisition of mains pipes or other works either within or beyond the limits of supply:
- (C) The period during which any such supply of water is to be afforded and the payments to be made or other consideration to be given in respect of such supply and the application by the contracting parties of their respective funds for the purposes of any such agreement:

Provided that no such supply of water shall be given by the District Committee for use in any district beyond the limits of supply except with the consent of any company or person supplying water under Parliamentary authority within such district and of the local authority of that district.

23. The District Committee may in constructing the works by this Order authorised and the works to be constructed by them authorised by the Order of 1910 deviate from the lines and position thereof as shown on the deposited plans respectively relating thereto to the extent of the limits of lateral deviation shown thereon and when the line of any work is shown on

Power to supply water by agreement.

Power to deviate.

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A.D. 1913. — those plans as passing along any road and no limits of lateral deviation are marked on the deposited plans the District Committee may in making such work deviate laterally to any extent within the boundaries of such road and the District Committee may also deviate vertically from the levels of all or any of the works authorised by this Order and the works to be constructed by them authorised by the Order of 1910 as shown on the deposited sections respectively relating thereto to any extent not exceeding five feet upwards and to any extent downwards Provided always that except for the purposes of crossing over a stream no part of any pipe shall be raised above the surface of the ground unless and except so far as is shown on the said sections :

Provided further that the District Committee shall not construct any embankment or retaining wall of any reservoir of a greater height above the general surface of the ground than that shown on the said sections in the case of the corresponding embankment or wall and five feet in addition.

Board of
Trade may
modify or
dispense
with usual
requirements
as to rail-
ways.

24. The Board of Trade shall in making or approving any regulations in relation to the working or using of the tramroad have regard to the nature of the district through which the tramroad passes and the character and extent of the traffic which may use the same and shall so far as they may deem consistent with public safety dispense with or modify all or any of the requirements or regulations with which compliance is usually under the provisions of any Act relating to railways or otherwise required by the Board of Trade in regard to railways.

Owners may
be required
to sell parts
only of cer-
tain pro-
perties.

25. And whereas in the exercise of the powers of this Order it may happen that portions only of the properties shown and numbered 5 11 16 17 and 18 in the parish of Arngask in the county of Perth 19 in the parish of Ballingry and 5 in the burgh of Cowdenbeath in the county of Fife on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in the said properties whereof parts only are required for the purposes of this Order may if such portions can in the opinion of the jury arbiters or other authority to whom the question of disputed compensation shall be submitted be severed from the

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remainder of such properties without material detriment thereto be required to sell and convey to the County Council the portions only of the properties so required without the County Council being obliged or compellable to purchase the whole or any greater portion thereof the County Council paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise. A.D. 1913.

26. Subject to the provisions of this Order the County Council in addition to the other lands which they are by this Order authorised to acquire may enter upon take hold and use for the purposes of erecting thereon a ram or rams or an hydraulic pumping engine or engines the following lands shown on the deposited plans and described in the deposited book of reference (that is to say):— Power to County Council to acquire additional lands for pumping.

(A) Certain lands containing one acre or thereabouts in the parish of Kennoway in the county of Fife forming portion of the enclosures numbered 327 and 358 on the $\frac{1}{2500}$ Ordnance map (first edition, 1894) of that parish situate on the north and south sides of the stream known as the Kennoway Burn and lying to the south of the public road through the village of Kennoway :

(B) Certain lands containing three acres or thereabouts in the parish of Auchterderran in the county of Fife forming portions of the enclosures numbered 275 244 240 118 119 238 239 249 and 247 on the $\frac{1}{2500}$ Ordnance map (first edition 1895) of that parish situate at and to the south-west of Bowhill Bridge on the north and south sides of the stream known as the River Ore :

And the District Committee may on such lands erect maintain work and use such ram or rams or engine or engines and may abstract water from the River Ore and the Kennoway Burn for use as motive power for working any such ram or engine Provided that all water so utilized shall be forthwith returned to the said river or burn as the case may be from which it has been taken.

27. The District Committee shall within the limits of supply have and may exercise for the purpose of laying water mains and pipes other than the works respectively described in District Committee to have powers of

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a local
authority
for laying
mains.

section 30 of the Order of 1910 and in the section of this Order whereof the marginal note is "Description of works" elsewhere than in any public road or street all the powers of a local authority under the Public Health (Scotland) Act 1897 with respect to the laying of water mains and pipes inside the district of such local authority.

Power to
alter roads
sewers &c.
temporarily.

28. For the purposes and during the execution of the several works which the District Committee are by this Order authorised to make and in maintaining the same and subject to the provisions of this Order the District Committee may temporarily break up alter divert or cross over or under or stop up any roads streets lanes paths bridges passages railways tramways sewers drains watercourses telegraphic telephonic electric and other mains pipes wires posts and other works in any of the lands shown on the deposited plans and specified in the deposited book of reference which they may from time to time find it expedient to interfere with the District Committee doing as little damage as possible and providing when possible temporary substitutes before interrupting the traffic on any such highway road street lane path bridge or passage or the flow of water gas sewage or electricity or telephonic communication in any such sewer drain watercourse main pipe wire or other work and making full compensation to all persons injuriously affected thereby Provided that nothing in this section shall authorise any interference with telegraphic or telephonic mains pipes wires posts and other works or property of His Majesty's Postmaster-General or shall authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 otherwise than in accordance with the provisions of section 15 of the Electric Lighting Act 1882.

New por-
tions of
road to be
subject to
same pro-
visions as
existing
roads.

29. Where in the construction of the works by the Order of 1910 and this Order authorised any diverted or altered portion of road is formed in lieu of any existing road such diverted or altered portion shall as respects management and maintenance and in all other respects but subject to the provisions of this Order be held as part of and be subject to the same provisions as the existing road so diverted or altered.

Limiting
powers of
District
Committee
to abstract
water.

30. The District Committee shall not sink any well upon or construct any works for taking or intercepting water from any lands acquired by the County Council unless the works and the lands upon which the same are to be constructed are specified in

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the Order of 1910 or this Order or, in an Act of Parliament A.D. 1913.
or Order confirmed by Parliament.

31. The water to be supplied from any main or pipe of the District Committee need not be supplied in any case at a level higher or at a pressure greater than can be supplied or afforded by gravitation from the reservoir or tank existing or by the Order of 1910 or this Order authorised from which the supply is taken. Pressure.

32. The District Committee may from and after the completion of the reservoir and other works to be constructed by the District Committee authorised by the Order of 1910 supply by agreement water from any of the lines of pipes by this Order or by the Order of 1910 authorised or from any of the works of the District Committee to any owners or occupiers of lands or heritages beyond the limits of supply and lying adjacent or near to the same and also to any person within the parishes of Arngask in the county of Perth Orwell and Portmoak in the county of Kinross Falkland and Strathmiglo in the county of Fife or within some or one of them in or through or near to which the lines of pipes or waterworks of the District Committee may pass or be constructed and the District Committee may contract with all or any of such persons for such supply at such rates upon such terms and conditions and for such period or periods of time as they may agree. Provided always that any supply of water under the provisions of this section shall not prejudicially affect or restrict the supply of water from time to time required for all purposes within the limits of supply or any supply of water which under the provisions of the Waterworks Clauses Acts 1847 and 1863 and this Order the District Committee may be required to give beyond the limits of supply. Provided further that the supply of water by the District Committee under this section in so far as outwith the Glenfarg Special Water Supply District shall be subject to the consent of the local authority of the district within which such supply is proposed to be given. Supply of water by District Committee along line of pipes.

33. In addition to the lands authorised to be taken compulsorily under the Order of 1910 and this Order the County Council may purchase by agreement lands not exceeding ten acres for the purposes of making depôts pipe-yards and other buildings tanks and conveniences in connexion with the undertaking and the works by this Order authorised and the works Power to acquire lands by agreement.

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A.D. 1913. to be constructed by the District Committee authorised by the Order of 1910 but nothing in this Order or the Order of 1910 shall exonerate the County Council or District Committee from any action interdict or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land purchased under the powers of this section.

Period for
purchase of
lands.

34. The powers of the County Council for the compulsory purchase of lands for the works authorised by this Order and the works to be constructed by the District Committee authorised by the Order of 1910 shall cease after the expiration of six years from the commencement of the Order of 1910.

Period for
completion
of works.

35. If the works authorised to be constructed by this Order and the works to be constructed by the District Committee authorised by the Order of 1910 are not completed within ten years from the commencement of the Order of 1910 then on the expiration of that period the powers by this Order granted to the District Committee for executing any works not so completed or in relation thereto shall cease except as to so much thereof as is then completed but nothing herein contained shall restrict the District Committee from enlarging altering replacing relaying increasing or removing any of their conduits aqueducts mains or pipes at any time and from time to time as occasion requires for the purpose of supplying water under this Order.

For pro-
tection of
Dunfermline
and District
Tramways
Company.

36. For the protection of the Dunfermline and District Tramways Company (in this section called "the company") the following provisions shall unless otherwise agreed upon between the District Committee and the company have effect (that is to say):—

(1) One month before commencing any part of the works by this Order authorised or any works connected therewith in any road street or place where the tramways of the company are laid or authorised to be laid the District Committee shall submit to the company plans sections specifications and drawings showing the method of constructing such works and shall not commence such construction until the company shall have signified their approval which shall not be unreasonably withheld of such plans sections specifications and drawings or have disapproved of the same. Provided that in case the company shall

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not have notified to the District Committee their disapproval of such plans sections specifications and drawings within fourteen days from the receipt thereof they shall be deemed to have approved the same and the District Committee may proceed to execute the works in accordance with such plans sections specifications and drawings : A.D. 1913.

(2) The District Committee shall carry out all such works as aforesaid so as not to cause any interruption of or impediment to the traffic on the tramways of the company and in all respects in accordance with such plans sections specifications and drawings as may have been reasonably approved as aforesaid or settled in case of difference by arbitration as herein-after provided :

(3) The District Committee shall pay to the company all reasonable expenses to which the company may be put by or in connexion with the construction of the said works and in payment of watchmen and inspectors on the tramways of the company during construction and any reasonable additional expense which may be caused to the company by or in consequence of the construction maintenance or user of the said works :

(4) If any difference shall arise under this section between the District Committee and the company the same shall be determined by an arbiter to be appointed in case of difference by the President of the Institution of Civil Engineers on the application of either party.

37. Nothing in this Order shall extend to or authorise any interference with electric lines conduits or works of the Fife Electric Power Company except in accordance with and subject to the provisions of sections 15 and 17 of the Electric Lighting Act 1882 and sections 17 18 and 77 of the Schedule to the Electric Lighting (Clauses) Act 1899. For protection of Fife Electric Power Company.

38. The following provisions for the protection of the North British Railway Company (herein-after called "the North British Company") shall unless otherwise agreed between the North British Company and the County Council and the District Committee apply and have effect (that is to say):— For protection of North British Railway Company.

(1) The County Council shall not under the powers of the Order of 1910 or of this Order take or acquire by

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compulsion any lands or property of the North British Company but shall be entitled to acquire such servitudes in and under the land and property of the North British Company as may be required for making and maintaining in accordance with the provisions of the Order of 1910 and this Order the conduits Nos. 1 and 5 to be constructed by the District Committee authorised by the Order of 1910 and in accordance with the provisions of this Order Work No. 1 authorised by this Order :

(2) Before commencing the construction under the powers of the Order of 1910 or of this Order of the said works in so far as affecting the lands or property of the North British Company the District Committee shall submit plans sections and specifications of their works to the North British Company for their approval and the said works shall be constructed and carried out in conformity only with such plans sections and specifications as approved and at the sight and to the reasonable satisfaction of the engineer of the North British Company and such works shall thereafter be maintained by the District Committee to the reasonable satisfaction of such engineer Provided that the approval of the North British Company shall not be unreasonably withheld and that it shall be deemed to have been given unless the North British Company signify their disapproval within twenty-eight days after submission of the said plans sections and specifications Provided also that any expenses which the North British Company may reasonably incur for inspection or superintendence of the said works during execution or in connexion with the maintenance or repair of these works at any time or in protecting their property during or in connexion with the construction maintenance or repair of the said works shall be repaid to them by the District Committee :

(3) All the works and operations of the District Committee under the Order of 1910 or this Order shall be constructed executed and completed so as not to injuriously affect the structure of any bridge of the

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North British Company or to cause any injury thereto or to any railway of that company or any interruption to the passage or conduct of traffic on any such railway and if any injury or interruption shall arise from or be in any way owing to the works or operations of the District Committee or the bursting leakage or failure of the said works or any of them the District Committee shall forthwith make good or remove such injury or interruption at their own expense or the North British Company may do the same and the District Committee shall pay to the North British Company all costs and expenses loss or damage including loss of traffic incurred or sustained by them in respect thereof: A.D. 1913.

- (4) The North British Company may repair and when necessary alter or reconstruct their railways or any bridge under or over which the said works or any of them may be laid but not so as to injuriously affect the said works of the District Committee or to interrupt the water supply otherwise than may be reasonably necessary in connexion with any work of repair alteration or reconstruction by the North British Company and if any injury or other interruption shall arise to the said works or any of them from or be owing in any way to any works or operations of the North British Company on any railway or on any such bridge the North British Company shall forthwith make good or remove such injury or interruption at their own expense or failing their doing so the District Committee may do the same and the North British Company shall pay to the District Committee all costs and expenses loss or damage incurred or sustained by them in respect thereof Provided that any such works of the North British Company shall so far as they may interfere with the works of the District Committee be done to the reasonable satisfaction of the engineer of the District Committee Any extra expense which the North British Company may incur in such repair alteration or reconstruction by reason of the construction or existence of the said works shall be paid by the District Committee and such extra

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expense if any shall failing agreement be determined by the arbiter to be appointed as after mentioned:

(5) Nothing contained in this Order shall prejudice or affect the provisions of section 29 of the North British Railway Act 1907 and the Trustees shall be the water authorities for the purposes of the said section:

(6) Notwithstanding anything contained in this Order the tramroad (Work No. 5) shall so far as upon the property of the North British Company be in the line shown coloured red on the plan signed by William Archer Tait civil engineer Edinburgh on behalf of the District Committee and William Alexander Fraser civil engineer Edinburgh on behalf of the North British Company:

(7) If any difference shall arise between the County Council and the District Committee and the North British Company or between the respective engineers of the District Committee and the North British Company as to the meaning of this section or any matter arising under the provisions of this section or as to any plans or sections or the mode of executing any works or as to any costs or expenses loss or damage provided for in this section such difference shall be determined by an arbiter to be appointed by the sheriff on the application of either the County Council and the District Committee or the North British Company.

Arrange-
ments with
Perthshire
County
Council
and Perth
District
Committee.

39. Section 62 (Arrangements with Perthshire County Council and Perth District Committee) of the Order of 1910 is hereby repealed Whereas the Perth District Committee of the County Council of the county of Perth (herein-after in this section respectively called "the Perth District Committee" and "the Perth County Council") formed the village of Glenfarg and the surrounding district into a special water supply district under the Public Health (Scotland) Act 1897 which is known as the Glenfarg special water supply district (herein-after in this section called "the district") and constructed for the supply of water thereto two reservoirs and a filter bed and laid down piping and executed other works necessary for such supply and it is expedient that such works should be transferred to and vested in the District Committee and that

they should maintain manage work and use the same for the supply of and should supply water to the district therefrom and from the Reservoir No. 1 or the filters and pure water tank (Work No. 12) by the Order of 1910 authorised. Therefore the following provisions shall (except so far as otherwise agreed to in writing between the District Committee and the Perth District Committee) have effect (that is to say):—

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- (1) The Perth County Council and the Perth District Committee shall so soon as the District Committee are in a position by means of the Reservoir No. 1 the Embankment No. 1 the Embankment No. 2 the Catchwater No. 1 the Intake No. 1 the Conduit No. 1 and Work No. 12 by the Order of 1910 authorised to afford a supply of water to the district and shall have notified the Perth District Committee to that effect transfer to the District Committee the said two reservoirs filter bed piping and other works constructed and executed by the Perth District Committee as aforesaid for the supply of water to the district and the District Committee shall from and after such transfer maintain manage work and use the same for the supply of water and shall supply water therefrom to the district in the same way and to the same extent as the Perth District Committee as local authority within the district were before such transfer bound to do and from and after the first term of Whitsunday occurring after such transfer shall be and become liable in the place and stead of the Perth County Council and the Perth District Committee for the balance remaining due of the moneys borrowed by the Perth County Council from the savings bank of the county and city of Perth for the construction of the waterworks to be transferred as herein-before provided and of the sum of two hundred pounds still to be borrowed to the extent of but not exceeding one thousand seven hundred and fifty pounds and shall relieve the Perth County Council and the Perth District Committee thereof:

- (2) In addition to the supply of water provided for in the immediately preceding subsection the District Committee shall during every day of twenty-four hours

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supply the district with ten thousand gallons of water from the said Reservoir No. 1 or from the said Work No. 12 by the Order of 1910 authorised for the domestic use of the inhabitants of the district and for sanitary and other purposes and in the event of the population of the district at any time exceeding six hundred persons the District Committee shall further supply from the said storage reservoir or pure water tank during every day of twenty-four hours such further quantity of water as may be required for the said purposes not exceeding in the whole fifteen thousand gallons and shall subject to the provisions of the Waterworks Clauses Act 1847 with respect to supply of water supply and lay down at their own cost and expense all pipes and apparatus necessary for affording the supplies of water provided for by this subsection and the District Committee shall have and may exercise all such powers with respect to the laying down maintenance and repair of such pipes and apparatus as the Perth District Committee had or might exercise before the commencement of this Order :

- (3) Nothing in this Order shall alter or affect the burdens conditions provisions and whole other subsisting obligations undertaken by and on the part of the Perth County Council and the Perth District Committee to be observed and performed specified in (first) a feu contract entered into between Mrs. Elizabeth Forbes or Burt and the Perth County Council dated the seventh day of June and registered in the General Register of Sasines for publication and also in the books of the Lords of Council and Session for preservation the fifteenth day of November both in the year one thousand nine hundred and one and (second) a minute of agreement entered into between Mrs. Isabella Elizabeth Mackenzie or Kirkland widow of Major-General John Agmondisham Vesey Kirkland of Wester Fordel William Agmondisham Vesey D'Urban Kirkland and Alexander David Martin Black as trustees of the said Major-General Kirkland and the Perth County Council and the Perth District Com-

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mittee dated the twelfth day of July and first second and fourteenth days of October all in the year one thousand nine hundred and one and the said feu contract and minute of agreement shall be read and construed in the same way and to the same effect as if the District Committee had been parties thereto instead of the Perth County Council and the Perth District Committee : A.D. 1913.

(4)—(A) The Perth County Council shall in respect of the obligations to be undertaken by the District Committee as herein-before in this section set forth assess and collect under the Public Health (Scotland) Act 1897 and pay over to the District Committee less the reasonable cost of collection an annual sum of money equivalent to an assessment on the assessable rental of the district as appearing in each year's valuation roll for the county of Perth of twopence in the pound and the domestic water rate for the time being charged within the limits of supply defined in this Order Provided that such annual payment in any one year shall not exceed one shilling and fourpence in the pound on the said assessable rental :

(B) The Perth County Council to enable them to fulfil the obligation imposed on them under this subsection shall be entitled and they are hereby authorised and required annually to impose assess levy and recover to such amount as shall be sufficient for the purpose an assessment equally on the owners and occupiers of all lands and heritages within the district which assessment shall be imposed assessed levied and recovered under and in accordance as nearly as may be with the provisions in that behalf of the Public Health Acts with respect to special water assessments in districts other than burghs :

(5) Nothing herein-before in this section contained shall prevent the District Committee from supplying water in bulk within the district under the provisions of this Order on such terms and at such price as may be agreed or as failing agreement may be fixed by the sheriff :

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(6) In the event of the District Committee failing to implement the obligations undertaken by them as set forth in subsections (1) (2) and (3) of this section the Perth District Committee shall be entitled to call upon the District Committee to retransfer to the Perth District Committee the waterworks applicable to the district and the District Committee shall thereupon retransfer the said works as existing at the date of retransfer and the District Committee on making such retransfer shall be relieved of all further liability for the future supply of water to the district and of all liability for payment of any balance which may remain due at the date of retransfer of the moneys borrowed by the Perth County Council from the savings bank of the county and city of Perth for the construction of the waterworks to be retransferred as herein-before in this section provided:

(7) If any difference shall arise under this section between the District Committee and the Perth County Council or the Perth District Committee the same unless otherwise agreed shall on the application of the parties or either of them be settled by the Dean of the Faculty of Advocates in Scotland for the time being whose decision shall be final.

For protection of
Perth District Com-
mittee.

40. Section 63 (For protection of Perth District Committee) of the Order of 1910 is hereby repealed. In the execution of the works and the exercise of the powers by this Order authorised and conferred so far as they affect highways in the county of Perth the following provisions for the protection of the Perth District Committee of the County Council of the county of Perth (herein-after in this section called "the Perth District Committee") shall (except so far as otherwise agreed to in writing between the District Committee and the Perth District Committee) have effect (that is to say):—

(1) All aqueducts conduits or lines of pipes or other works to be laid in or along any county highway or in upon or across any county bridge shall so far as practicable be laid in such position in or at the side thereof as the Perth District Committee in writing under the hand of their surveyor for the district

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may reasonably direct and all works and operations to be executed by the District Committee shall be so executed at their risk and they shall maintain the tracks thereof for at least twelve months after the completion of the works : A.D. 1913.

(2) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall extend and apply to all county highways and county bridges opened and broken up or interfered with by the District Committee in the execution of the works and the exercise of the powers of the Order of 1910 and this Order Provided that the notice required by section 30 of that Act shall not be less than seven days instead of three days :

(3) The plan required by section 31 of the last-mentioned Act shall be accompanied by a section of the proposed works and a short specification thereof and shall be delivered to the Perth District Committee or their surveyor for the district by the District Committee not less than in the case of a county bridge one month and in all other cases fourteen days before they commence to break or open up any county highway or interfere with any county bridge for the purpose of executing the works :

(4) No greater length than one hundred and fifty yards of any county highway shall be broken up at any one place at one time without the consent of the Perth District Committee A clear and sufficient carriageway shall be kept for the passage of carriages and traffic along every county highway and county bridge during any interference therewith by the District Committee unless where by arrangement with the Perth District Committee a county highway or county bridge may be shut up and in case of default in compliance with this provision the Perth District Committee may by their own servants and workmen clear any such carriageway and may recover the expenses of and incident thereto from the District Committee :

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- (5) Nothing in this Order shall authorise the District Committee to interfere with the structural part of any county bridge or culvert without the consent in writing of the road surveyor for the Perth District which consent shall not be unreasonably withheld and may be given upon such conditions as the Perth District Committee or the said surveyor may reasonably determine Provided that the Perth District Committee shall be deemed to have given such consent required under this subsection and under subsection (1) of this section if within one month after plans have been submitted to the said surveyor he shall not have given written notice to the District Committee objecting thereto :
- (6) Nothing in the Order of 1910 or this Order contained shall interfere with the right of the Perth District Committee to alter the level of or divert or improve in any manner they think fit any county highway in or along which any aqueduct conduit or line of pipes of the District Committee shall have been laid and the District Committee shall forthwith on receiving notice in writing under the hand of the clerk or surveyor of the Perth District Committee alter the position of any such aqueduct conduit or line of pipes in the manner and to the extent prescribed by such notice or as in the case of difference shall be determined by arbitration in the manner herein-after prescribed :
- (7) Nothing in the Order of 1910 or this Order contained shall interfere with the right of the Perth District Committee at any time or times to remove alter or rebuild any county bridge or the approaches thereto or culvert over near or attached to which any aqueduct conduit or line of pipes of the District Committee is carried in the same manner as they might have removed altered or rebuilt any such bridge or the approaches thereto or culvert if the Order of 1910 and this Order had not been confirmed and such aqueduct conduit or line of pipes had not been constructed or laid over or near or attached to such bridge or culvert and in the event of any such bridge or the approaches thereto or culvert over or

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near or attached to which any such aqueduct conduit or line of pipes is laid being removed altered or rebuilt as aforesaid the District Committee shall at the joint cost of the District Committee and of the Perth District Committee alter the position of such aqueduct conduit or line of pipes and any works by which such aqueduct conduit or line of pipes is carried over or near or attached to such bridge or the approaches thereto or culvert as aforesaid Provided that during the removal alteration or rebuilding of such bridge or the approaches thereto or culvert as aforesaid the Perth District Committee shall afford all reasonable facilities for temporarily carrying such aqueduct conduit or line of pipes across or along any road or stream or river so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such aqueduct conduit or line of pipes : A.D. 1913.

- (8) The District Committee shall construct and maintain in connexion with the aqueducts conduits or lines of pipes by the Order of 1910 authorised crossing or passing along any highway or road hydrants or other suitable apparatus or appliances for taking water from the said pipes which shall be placed along and at the side of such highways or roads at intervals of not less than one mile or at such places not more numerous as shall be arranged between the District Committee and the Perth District Committee and the Perth District Committee shall be entitled to the use of the same and to take water thereby free of charge up to but not exceeding twenty thousand gallons yearly through their servants and workmen for the purpose of their road engines and the renewal maintenance and repair of highways and roads and bridges and for watering the same and the extinguishing of fires but the water shall not be so taken or used for any other purpose unless otherwise agreed upon as aforesaid The Perth District Committee shall pay to the District Committee for a supply of water exceeding twenty thousand gallons yearly such rates as may be agreed upon or failing agreement may be fixed by arbitration as herein-after provided :

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- (9) All works shall be so executed by the District Committee as not to stop the traffic and so far as reasonably practicable not in any way to impede or interfere with the traffic on any highway or over any county bridge or the approaches thereto :
- (10) The Perth District Committee shall not be liable for or in respect of any damage or injury done to any work of the District Committee by reason of such work being laid at a depth below the surface of any highway insufficient for its protection from injury arising from the reasonable use of any steam or other roller or traction engine for the repair of such county highway or from the passage of the traffic in such highway or in repairing any county bridge or the approaches thereto or culvert :
- (11) For the purposes of section 57 of the Roads and Bridges (Scotland) Act 1878 the District Committee shall be deemed to be the person by whose order any excessive weight shall have been passed or any extraordinary traffic conducted on the county highways in connexion with the execution of the works by the Order of 1910 authorised. The District Committee shall make payment to the Perth District Committee for and in respect of the carriage or haulage over any highway situate within the district of the Perth District Committee of materials to be used by the District Committee in the construction repair or maintenance of the works or any of them by the Order of 1910 authorised or in the reconstruction thereof of threepence per ton for each mile for and in respect of such materials so carried or hauled by traction engine haulage and of twopence per ton for each mile for and in respect of such materials so carried or hauled in carts and may for the purpose of such traffic lay down at the sight and to the reasonable satisfaction of the road surveyor of the Perth District Committee and during the construction of the works by the Order of 1910 authorised or such further period as may be agreed upon between the District Committee and the Perth District Committee and so long as the District Committee shall continue to pay to the Perth District

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Committee the sum of twenty-five pounds per annum A.D. 1913.
use a line of rails along or on the level across any
highway or public road situate between Glenfarg
Railway Station and the Reservoir No. 1 Provided
that the District Committee shall erect and maintain
gates across such line of rails on each side of the
road and shall on the abandonment by them of such
line remove the rails and at their expense restore
the surface of the roadway to the reasonable satisfac-
tion of the said road surveyor Provided further that
the District Committee shall be bound to relieve the
Perth District Committee of all claims for damages
attributable to any operations of the District Com-
mittee under this subsection or to the line of rails
being on the highway or footpath:

- (12) If any difference arises between the Perth District
Committee and the District Committee touching this
section or anything to be done or not to be done
thereunder such difference shall failing agreement be
referred to the decision of an arbiter to be named
(failing agreement of the parties to name an arbiter)
by the sheriff on the application of either party and
the decision of such arbiter shall be final.

41. Section 65 (For protection of Waterworks Commis-
sioners of Kirkcaldy and Dysart) of the Order of 1910 is hereby
repealed For the protection of the Waterworks Commissioners
of Kirkcaldy and Dysart (in this section called "the Commis-
sioners") the following provisions shall unless otherwise agreed
upon between the District Committee and the Commissioners
have effect (that is to say):—

For pro-
tection of
Water-
works Com-
missioners
of Kirk-
caldy and
Dysart.

- (1) Notwithstanding anything in the Order of 1910 or this
Order contained none of the powers conferred upon
the District Committee shall be exerciseable within
the area of compulsory supply of the Commissioners
without the consent in writing of the Commissioners:
- (2) The District Committee shall purchase from the Com-
missioners at the fifteenth day of May one thousand
nine hundred and thirteen the whole pipes (except
the trunk mains between their several reservoirs and
their existing area of compulsory supply) with all

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connexions meters and fittings laid down and owned by the Commissioners for the supply of water from their existing reservoirs outside the said area of compulsory supply as said pipes connexions meters and fittings exist at the said date and also any rights of user of any other pipes forming part of the Commissioners' system for distributing water outside the said area of compulsory supply in so far as the Commissioners have power to confer the same and such pipes connexions meters and fittings shall thereafter for all purposes form part of and be comprised in the undertaking of the District Committee and in respect of said purchase and the capital and revenue expenditure of the Commissioners incident thereto the District Committee shall pay to the Commissioners the sum of two thousand pounds Provided that the said sum of two thousand pounds may in the option of the District Committee be paid by instalments over a period of not exceeding twelve years from the fifteenth day of May one thousand nine hundred and thirteen the said sum of two thousand pounds or the said sum as reduced by payment of instalments to bear interest until payment of the same at the rate of three per centum per annum said interest being paid on the fifteenth day of May one thousand nine hundred and fourteen and on the fifteenth day of May yearly thereafter Provided further that the water meters purchased as aforesaid and any new and additional meters required in connexion with the supply of water referred to in the immediately succeeding subsection shall be under the control of the Commissioners for the purposes of repair and registration of water sold so long as the Commissioners shall continue to supply water through the said meters :

- (3) Notwithstanding the purchase of the pipes and others belonging to the Commissioners as provided by the immediately preceding subsection the Commissioners shall have the sole right and shall be bound to continue to supply water as at present outside their limits of compulsory supply for a period not exceeding twelve years from the fifteenth day of May

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one thousand nine hundred and thirteen but the said A.D. 1913.
supply of water and any additional supply that may
be necessary to enable the District Committee to
fulfil the obligations imposed upon them by the
section of this Order whereof the marginal note is
“For protection of Rothes Trustees” shall be afforded
by the Commissioners to the District Committee
as water authority and the Commissioners shall be
entitled to charge the District Committee for such
supply on the same terms and at the same rates and
charges as are for the time being levied by the
Commissioners for water supplied within their com-
pulsory area with the addition of twenty-five per
centum of such rates and charges Provided that it
shall be within the power of the said Commissioners
and the District Committee by agreement to vary
the terms upon which the Commissioners shall supply
water as at present outside their limits of compulsory
supply or to provide further supplies or to extend
the period of supply by the said Commissioners
beyond the said period of years :

- (4) From and after the fifteenth day of May one thousand
nine hundred and thirteen and in respect of the
obligations undertaken by the District Committee
in the section of this Order whereof the marginal
note is “For protection of Rothes Trustees” the
obligations regarding water supply imposed upon
the Commissioners by sections 47 48 and 61 of the
Kirkcaldy and Dysart Waterworks Act 1867 and
sections 20 and 21 of the Kirkcaldy and Dysart
Waterworks (Additional Powers) Act 1881 shall
cease and determine :
- (5) In carrying out any of the works to be constructed by
the District Committee authorised by the Order of 1910
the District Committee shall not themselves alter or
interfere with the existing mains branch and service
pipes or other works of the Commissioners or the
lines and levels of the same or any apparatus valves
accesses or entrances connected therewith nor prevent
nor injuriously affect or interrupt the flow of water
but in the event of any alterations or interference

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with such works aforesaid being required by the District Committee in the exercise of the powers conferred upon them by this Order such alterations or interference with such works shall be executed by the Commissioners and the Commissioners shall use every means in their power to have such alterations on or interference with their respective works executed as economically as possible and with all reasonable despatch and in such a manner as will enable the District Committee to carry out their works without undue delay. The reasonable cost of so much of such alterations or interference with such works by the Commissioners as is reasonably due to the operations of the District Committee shall be paid by the District Committee to the Commissioners within three months after a detailed account thereof shall have been rendered to the District Committee and should any dispute arise as to what is due by the District Committee the same shall be determined by arbitration as herein-after in this section provided and the Commissioners' works as so altered shall remain part of the statutory undertaking of the Commissioners :

- (6) In the event of any alterations on or deviations of any water mains branch or service pipes or other works and property of the Commissioners being necessary by or in consequence of the operations of the District Committee for more effectually securing and safeguarding the same or for the construction of such works as may be required for the protection of the Commissioners' undertaking such alterations or deviations or protection works shall be executed and completed by the Commissioners at the expense of the District Committee. Provided that no such works intended to be executed at the expense of the District Committee shall be commenced without giving at least fourteen days' written notice or if the circumstances are urgent then such notice as the circumstances permit to the District Committee with the particulars including plans and sections of the works intended and the estimated cost thereof and the same shall be executed as economically as possible and so as

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to interfere as little as possible with the works of the District Committee and the District Committee may elect to vary or alter their works so as to render unnecessary or lessen the proposed operations on the part of the Commissioners and require the intended alterations or deviations to be correspondingly varied : A.D. 1913.

- (7) The Commissioners shall at all times have right of access to their existing and future mains branch and service pipes and works connected therewith and to any protective works which may be constructed as herein provided for the purpose of the examination cleansing and renewal repair and duplication enlargement alteration and maintenance of the same and for making any additional works which they may consider necessary or may see fit or may be hereafter authorised to construct :
- (8) The District Committee shall before proceeding with any works or operations which interfere with or affect any of the mains branch and service pipes and other works of the Commissioners give at least one month's previous written notice of the intention of the District Committee so to do to the secretary of the Commissioners and shall submit plans and sections showing the intended operations which plans and sections shall so far as any of the mains or branch pipes or other works of the Commissioners shall or may be interfered with or affected be subject to the reasonable approval of the engineer of the Commissioners and the District Committee shall carry out such works only in accordance with the plans so approved :
- (9) All additional expenditure which at any time after the commencement of this Order may be reasonably incurred by the Commissioners in consequence of the construction or laying down or by reason of the existence of any mains pipes or other apparatus of the District Committee which but for the confirmation of the Order of 1910 and this Order and the exercise of the powers conferred on the District Committee would not have otherwise arisen shall be borne and paid by the District Committee :

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(10) The Commissioners shall not be liable for any loss or damage which the District Committee may sustain by the exercise in a reasonable manner by the Commissioners of any statutory powers possessed by them for the time being for the management inspection repair maintenance and renewal of their works or conferred by the Order of 1910 or in connexion with the construction and maintenance at any time of new and additional mains branch and service pipes and other works which may be found necessary for the purposes of their undertaking:

(11) If any difference shall arise at any time between the District Committee and the Commissioners with respect to any of the matters referred to in or arising out of this section except subsections (1) and (2) hereof or with respect to the execution of any works therein provided for or referred to such difference shall failing agreement of the parties to name an arbiter be referred to an arbiter to be nominated by the sheriff on the application of either of the said parties and the decision of the said arbiter in all such matters so referred shall be final Provided however that in reference to the eight-inch or larger mains of the Commissioners and the apparatus and valves connected therewith the Commissioners shall be entitled absolutely to decide the manner in which and the conditions upon which such mains apparatus and valves shall be altered or interfered with and in these cases the said arbiter shall failing agreement decide whether and to what extent such alteration or interference was due to the operations of the District Committee and the amounts reasonably chargeable against the District Committee in respect thereof.

Confirming
agreement
with Kin-
ross County
Council.

42. Section 78 (Confirming agreement with Kinross County Council) of the Order of 1910 is hereby repealed The agreement between the provost magistrates and councillors of the burgh of Buckhaven Methil and Innerleven for themselves and on behalf of the Trustees of the one part and the county council of the county of Kinross of the other part as set forth in the schedule to this Order is hereby confirmed and made

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binding on the District Committee as if they had been mentioned therein instead of the Trustees and on the said county council Provided that the restriction imposed by Article 3 of the agreement set forth in that schedule on the length of road which may be opened at one time shall not apply to the District Committee but the District Committee shall not without the consent of the said county council open or break up at any one time a greater length than one hundred yards of any road in the county of Kinross which does not exceed a quarter of a mile in length and in the case of any road exceeding a quarter of a mile in length the District Committee shall leave an interval of at least a quarter of a mile between any two places at which they may open or break up such road and shall not open or break up at any such place a greater length than one hundred yards Provided also that any reference to the compulsory area or the limits of compulsory supply or to the rate levied by the Trustees in the said agreement shall for the purposes of this Order be read as referring to the limits of supply or as the case may be to the domestic water rate and the public water rate authorised by and prescribed in this Order.

43. The following provisions for the protection of the Fife Coal Company Limited Wilsons and Clyde Coal Company Limited and Sir John Wilson of Airdrie Baronet (who and their successors in estate are herein-after in this section called "the proprietors") shall unless otherwise agreed upon between the proprietors and the County Council or the District Committee apply and have effect (that is to say):—

For protection of Fife Coal Company Limited Wilsons and Clyde Coal Company Limited and Sir John Wilson of Airdrie Baronet.

(1) Nothing in this Order contained shall prejudice the rights of the proprietors under the agreements made with the Fife Coal Company Limited and Wilsons and Clyde Coal Company Limited respectively under and in terms of minute of meeting of the District Committee dated the twenty-seventh day of April one thousand nine hundred and twelve and minute of meeting of sub-committee of the District Committee dated the twenty-fifth day of May one thousand nine hundred and twelve:

(2) The County Council shall not impose and levy the domestic water rate upon any lands and heritages owned or occupied by the proprietors respectively within the area at present supplied with water from

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the respective waterworks of the proprietors situated at Lochore Glencraig and Bowhill until the County Council shall have acquired the whole of the said waterworks of the proprietors including therein all reservoirs pumps softening plant tanks mains and pipes and other plant and apparatus used exclusively in connexion therewith which waterworks the said proprietors shall be bound to sell to the County Council and which waterworks are herein-after in this section referred to as "the undertaking":

- (3) The price to be paid by the County Council to the proprietors respectively in respect of the acquisition of their respective portions of the undertaking shall except in so far as falling to be fixed under the agreements referred to in subsection (1) of this section failing agreement between the parties be fixed by a single arbiter to be nominated by the parties jointly or failing agreement to be nominated by the Dean of the Faculty of Advocates for the time being:
- (4) The arbiter so to be appointed shall fix the price after inspection of the undertaking and consideration of such documentary or other evidence as he may in his discretion require and shall allow for structural value only in addition to the value of the reservoir and tank sites and shall have regard to depreciation of the undertaking and make no allowance in respect of wayleaves or goodwill or compulsory acquisition or in respect of the water rights of the proprietors and further shall fix the price of the sites of any reservoirs and tanks on the footing that no right of support therefor is conferred by the proprietors on the County Council:
- (5) Upon the undertaking being acquired by the County Council they shall be entitled to a perpetual right of wayleave but to no right of support for all pipes and mains forming part thereof and of access thereto and to any reservoirs and tanks acquired by the County Council for the purpose of maintaining repairing altering renewing or discontinuing all or any of such pipes mains reservoirs or tanks, without causing any

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unnecessary damage but compensating the proprietors and tenants for any surface damage thereby caused: A.D. 1913.

- (6) The undertaking when acquired by the County Council shall for all purposes whatsoever form part of and be comprised in the undertaking of the County Council and the District Committee as defined in the section of this Order whereof the marginal note is "Interpretation."

44. The following provisions for the protection of the Right Honourable Ronald Craufurd Munro Ferguson of Raith (who and his successors in the estate of Raith in the county of Fife are herein-after in this section called "the proprietor") shall unless otherwise agreed upon between the proprietor and the County Council or the District Committee apply and have effect (that is to say):—

For protec-
tion of Right
Honourable
Ronald
Craufurd
Munro
Ferguson of
Raith.

- (1) The County Council shall not impose and levy the domestic water rate upon any lands and heritages of the proprietor presently supplied with water from the Bankhead reservoir of the proprietor unless and until the County Council shall have acquired the water undertaking of the proprietor (which water undertaking the proprietor shall sell to the County Council) consisting of the said reservoir and the water mains pipes and other plant and apparatus used in connexion therewith (herein-after in this section together referred to as "the undertaking"):
- (2) The price to be paid by the County Council to the proprietor in respect of the acquisition by them of the undertaking shall failing agreement between the parties be fixed by a single arbiter to be nominated by the parties jointly or failing agreement by the Dean of the Faculty of Advocates for the time being:
- (3) The arbiter so to be appointed shall fix the price after inspection of the undertaking and consideration of such documentary or other evidence as he may in his discretion require and shall allow for structural value only in addition to the value of the site of the said reservoir and shall have regard to depreciation of the undertaking and shall make no allowance in respect of wayleaves or goodwill or of compulsory

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acquisition or in respect of the water rights of the proprietor and further shall fix the price of the site of the said reservoir or tank on the footing that no right of support therefor is conferred by the proprietor on the County Council:

(4) Upon the undertaking being acquired by the County Council they shall be entitled to maintain and use the existing water supplies to the said reservoir and shall also be entitled to a perpetual right of wayleave but to no right of support for all mains and pipes forming part thereof and of access thereto and to the said reservoir for the purpose of maintaining repairing altering renewing or discontinuing all or any of such mains or pipes of the said reservoir without causing any unnecessary damage but compensating the proprietor and tenants for any surface damage thereby caused:

(5) The undertaking when acquired by the County Council shall for all purposes whatsoever form part of and be comprised in the undertaking of the County Council and the District Committee as defined in the section of this Order whereof the marginal note is "Interpretation."

For protection of
Charles
Barrington
Balfour of
Balgonie.

45. The following provisions for the protection of Charles Barrington Balfour of Balgonie (herein-after in this section called "the proprietor") shall unless otherwise agreed upon between the proprietor and the County Council or the District Committee apply and have effect (that is to say):—

(1) Nothing in this Order contained shall prejudice the rights and privileges conferred on the proprietor under the minute of agreement entered into between the District Committee and the Commissioners of the burgh of Buckhaven Methil and Innerleven on the first part and the proprietor and the late John Balfour of Balbirnie on the second part dated the thirty-first day of March and the ninth seventeenth and thirtieth days of April one thousand eight hundred and ninety-four:

(2) The County Council shall not impose and levy the domestic water rate upon the mines minerals and

quarries of the proprietor until the expiry of a period of ten years from the commencement of this Order unless the County Council shall sooner have acquired under subsections (3) (4) and (5) of this section the waterworks of the proprietor consisting of the pump tank and distributing pipes and other plant and apparatus used in connexion therewith conveying water from the source adjacent to Balgonie Castle which waterworks are herein-after in this section referred to as "the undertaking":

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- (3) The County Council shall not impose and levy the domestic water rate upon any lands or heritages of the proprietor (other than mines minerals and quarries) at present supplied with water from the undertaking of the proprietor unless and until the County Council shall have acquired the undertaking of the proprietor which undertaking the proprietor shall be bound to sell to the County Council upon the receipt of a notice in writing by post in a registered letter from the County Council of their intention to acquire the same:
- (4) The price to be paid by the County Council to the proprietor in respect of the acquisition of the undertaking shall failing agreement between the parties be fixed by a single arbiter to be nominated by the parties jointly or failing agreement to be nominated by the Dean of the Faculty of Advocates for the time being:
- (5) The arbiter so to be appointed shall fix the price after inspection of the undertaking and consideration of such documentary or other evidence as he may in his discretion require and shall allow for structural value of the undertaking only in addition to the value of the tank site and shall have regard to depreciation of the undertaking and shall make no allowance in respect of wayleaves or goodwill or compulsory acquisition or in respect of the water rights of the proprietor and further shall fix the price of the site of the tank on the footing that no right of support therefor is conferred by the proprietor on the County Council:

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- (6) Upon the undertaking being acquired by the County Council they shall be entitled to maintain and use the existing water supplies to the said tank and shall also be entitled to a perpetual right of way-leave but to no right of support for all pipes forming part thereof and of access to such pipes and to the said pump and tank for the purpose of maintaining repairing altering renewing or discontinuing all or any of such pipes pump or tank without causing any unnecessary damage but compensating the proprietor and tenants for any surface damage thereby caused:
- (7) The undertaking when acquired by the County Council shall for all purposes whatsoever form part of and be comprised in the undertaking of the County Council and the District Committee as defined in the section of this Order whereof the marginal note is "Interpretation."

For protec-
tion of
Edward
Balfour of
Balbirnie.

46. The following provisions for the protection of Edward Balfour of Balbirnie (herein-after in this section called "the proprietor") shall unless otherwise agreed upon between the proprietor and the County Council or the District Committee apply and have effect (that is to say):—

- (1) Nothing in this Order contained shall prejudice the rights and privileges conferred on the proprietor under the minute of agreement entered into between the District Committee and the Commissioners of the burgh of Buckhaven Methil and Innerleven on the first part and the proprietor's father the late John Balfour and Charles Barrington Balfour of Balgonie on the second part dated the thirty-first day of March and the ninth seventeenth and thirtieth days of April one thousand eight hundred and ninety-four:
- (2) The County Council shall not impose and levy the domestic water rate upon the mines minerals and quarries of the proprietor until the expiry of a period of ten years from the commencement of this Order unless the County Council shall sooner have acquired under subsections (3) (4) and (5) of this section the waterworks of the proprietor consisting of the reservoir at Coul tank mains and distributing pipes and

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other plant and apparatus used in connexion therewith which waterworks and others are herein-after in this section referred to as "the undertaking":

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- (3) The County Council shall not impose and levy the domestic water rate upon any lands or heritages of the proprietor (other than mines minerals and quarries) at present supplied with water from the undertaking unless and until the County Council shall have acquired the undertaking which undertaking the proprietor shall be bound to sell to the County Council upon the receipt of a notice in writing by post in a registered letter from the County Council of their intention to acquire the same:
- (4) The price to be paid by the County Council to the proprietor in respect of the acquisition of the undertaking shall failing agreement between the parties be fixed by a single arbiter to be nominated by the parties jointly or failing agreement to be nominated by the Dean of the Faculty of Advocates for the time being:
- (5) The arbiter so to be appointed shall fix the price after inspection of the undertaking and consideration of such documentary or other evidence as he may in his discretion require and shall have regard to depreciation of the undertaking and allow for structural value of the undertaking only in addition to the value of the reservoir and tank sites and shall make no allowance in respect of wayleaves or goodwill or compulsory acquisition or in respect of the water rights of the proprietor and further shall fix the price of the sites of the reservoir and tank on the footing that no right of support therefor is conferred by the proprietor on the County Council:
- (6) Upon the undertaking being acquired by the County Council they shall be entitled to maintain and use the existing water supplies to the said reservoir and tank and shall also be entitled to a perpetual right of wayleave but to no right of support for all pipes and mains forming part thereof and of access to such pipes and mains and to the said reservoir and tank

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for the purpose of maintaining repairing altering renewing or discontinuing all or any of such pipes mains reservoir or tank without causing any unnecessary damage but compensating the proprietor and tenants for any surface damage thereby caused:

- (7) The undertaking when acquired by the County Council shall for all purposes whatsoever form part of and be comprised in the undertaking of the County Council and the District Committee as defined in the section of this Order whereof the marginal note is "Interpretation."

For protec-
tion of
Roths
Trustees.

47. The following provisions for the protection of the Trustees of the late Right Honourable Henrietta Anderson Morshead Waldegrave Leslie Countess of Roths and their successors in the estate of Roths (herein-after in this section called "the proprietors") shall unless otherwise agreed upon between the proprietors and the District Committee apply and have effect (that is to say):—

- (1) On and after the fifteenth day of May one thousand nine hundred and thirteen the District Committee shall implement the obligation of the Waterworks Commissioners of Kirkcaldy and Dysart (herein-after in this section called "the Commissioners") under section 47 of the Kirkcaldy and Dysart Waterworks Act 1867 and section 21 of the Kirkcaldy and Dysart Waterworks (Additional Powers) Act 1881 to give a gratuitous supply of one thousand gallons of water each day to the mansion house and offices of Leslie Leslie Mains and the home farm of Leslie called South Parks and so long as the supply of water thereto by the District Committee shall not exceed one thousand gallons a day no domestic water rate shall be imposed and levied by the County Council upon the said premises In the event of a supply of water in excess of one thousand gallons a day being required and taken by the proprietors from the District Committee for the premises the proprietors shall be entitled to set off against the amount of the domestic water rate which shall then become leviable in respect of the said premises an annual sum of six pounds in consideration

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and in substitution for the right to demand the said quantity of one thousand gallons a day: A.D. 1913.

- (2) On and after the fifteenth day of May one thousand nine hundred and thirteen the District Committee shall supply water to the proprietors and their tenants and feuars of any houses or places within eight furlongs of the existing trunk main laid by the Commissioners through the Rothés estate as the proprietors may from time to time require. The said supply shall be given on the terms and conditions and for the rates of payment which the District Committee or the County Council may under the provisions of this Order impose and levy within the limits of supply. Provided—

(a) That the cost of any pipes which the District Committee may be required to lay down under section 35 of the Waterworks Clauses Act 1847 shall be calculated as if such pipes had been laid from the nearest suitable point of the said trunk main of the Commissioners; and

(b) That for a period of ten years from and after the termination of the supply of water to the Rothés estate by the Commissioners the rates and charges for the supply of water for domestic and other purposes to be imposed and levied by the District Committee upon any houses or places on the said estate situated within eight furlongs of the main pipe laid by the Commissioners through the estate shall not exceed the rates payable to the Commissioners for water supplied by them to the Rothés estate for the year terminating on the fifteenth day of May one thousand nine hundred and twelve.

48. The following provisions for the protection of John Fergus and Company (who and their successors in estate are herein-after in this section called "the proprietors") shall unless otherwise agreed upon between the proprietors and the County Council or the District Committee apply and have effect (that is to say):—

For protection of John Fergus and Company.

Notwithstanding anything in this Order contained the domestic water rate shall not be imposed and levied on the lands and heritages of Prinlaws belonging or reputed to belong

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at the thirty-first day of July one thousand nine hundred and twelve to the proprietors so long as the said lands shall be afforded by the proprietors an adequate supply of wholesome water for domestic purposes. Provided always that if any question shall arise between the District Committee and the proprietors under this section it shall be determined summarily by the sheriff who shall have regard to all the circumstances of the case and whose decision shall be final.

For protection of Tullis Russell and Company Limited.

49. The following provisions for the protection of Tullis Russell and Company Limited (who and their successors in estate are herein-after in this section called "the proprietors") shall unless otherwise agreed upon between the proprietors and the County Council or the District Committee apply and have effect (that is to say):—

Notwithstanding anything in this Order contained no domestic water rate shall be imposed and levied on the lands of Auchmuty and Rothes Paper Mills and Rothes Bleachfield presently belonging to the proprietors so long as the said lands shall have a proper supply from the proprietors of wholesome water for domestic purposes. Provided always that if any question shall arise between the District Committee and the proprietors under this section it shall be determined summarily by the sheriff who shall have regard to all the circumstances of the case and whose decision shall be final.

Power to establish communication with works by means of electricity.

50. The District Committee may establish and maintain such overhead wires and apparatus for the transmission of messages and other communications to and from any point or points on the route of their pipes or to and from their reservoir wholly or partially by means of electricity or by telephone (which wires and apparatus are in this section called "any such apparatus as aforesaid") as they think expedient or necessary for the better execution of any of the powers or authorities for the time being vested in them and in relation to any such apparatus as aforesaid for the purposes of the Telegraph Act 1863 the District Committee shall be in the like position in all respects as a company authorised by special Act of Parliament to construct and maintain telegraphs would be or might have been under that Act but nothing in this Order shall authorise the District Committee to work any such apparatus as aforesaid in consideration

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of any money payment or any valuable consideration or for any purpose other than the execution of their powers and authorities aforesaid or in contravention of any exclusive privilege by law vested for the time being in the Postmaster-General or of the Wireless Telegraphy Act 1904 or to construct any such apparatus as aforesaid which shall interfere in any way with any telegraphic line in the possession or under the control of the Postmaster-General or the North British Railway Company as the case may be and the District Committee shall within forty-eight hours of the service on them of a notice in writing by the Postmaster-General or the North British Railway Company as the case may be in that behalf remove or alter to the satisfaction of the Postmaster-General or the North British Railway Company as the case may be any such apparatus as aforesaid which in the opinion of the Postmaster-General or the North British Railway Company as the case may be interferes or will interfere with the efficient or convenient maintaining working or user of any telegraphic line which the Postmaster-General or the North British Railway Company as the case may be has constructed or desires to construct and in default of such removal or alteration as aforesaid the Postmaster-General or the North British Railway Company as the case may be may remove or alter any such apparatus as aforesaid at the expense of the District Committee.

A.D. 1913.

In this section the expression "telegraphic line" has the same meaning as in the Telegraph Act 1878.

SUPPLY OF WATER.

51. In addition to the powers of supply conferred upon and transferred to the County Council and the District Committee by the sections of this Order of which the marginal notes are respectively "Application of Order of 1910 to County Council and District Committee" and "Power to take water" the District Committee may for the purpose of affording a supply of water within the parishes of Kennoway and Scoonie take water from the portion of the Conduit No. 2 authorised by the Order of 1910 situate between its termination and Carriston Reservoir.

Power to District Committee to take water from Conduit No. 2 authorised by Order of 1910.

52. The limits within which the District Committee are authorised to supply water and which are in this Order referred to as "the limits of supply" are hereby defined as comprising

Defining limits of supply.

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A.D. 1913. and including the Kirkcaldy District save and except (first) those portions of that district which are included within the limits of compulsory supply of the Trustees as defined by section 68 of and the First Schedule to the Order of 1910 and (second) so much of the Kirkcaldy District as is situate within the limits of compulsory supply of the Waterworks Commissioners of Kirkcaldy and Dysart as defined by section 58 of the Kirkcaldy and Dysart Waterworks Act 1867 and extended by the Kirkcaldy Burgh and Harbour Act 1876 and the Kirkcaldy Corporation Order 1910.

Supply of
water for
domestic
use within
limits of
supply.

53. The District Committee may so far as not already laid cause pipes to be laid and water to be brought through all streets and roads or portions of streets or roads along which houses are built within the limits of supply and shall as soon as conveniently may be after the completion of the reservoirs and other works by the Order of 1910 and this Order authorised to be constructed at the request of the owner or occupier of any house or part of a house occupied as a separate dwelling in any such street or road as aforesaid situated within the limits of supply or any person entitled to demand a supply of water under the provisions of this Order furnish to such person by means of service or communication pipes and other necessary and proper apparatus to be provided and laid down (so far as not already provided and laid down) and maintained by and at the cost of such person unless otherwise agreed between him and the District Committee a sufficient supply of water for domestic purposes in any such house or dwelling (including a supply for private waterclosets and private fixed baths in any such dwelling-house) including the office-houses yards and other pertinents of the same Provided that no person shall be entitled to demand such supply of water or to require the District Committee to lay down pipes or fire plugs unless some pipe of the District Committee shall have been laid within one hundred yards of the premises in respect of which such supply of water or pipes or fire plugs is or are demanded measuring from the outer wall of such premises or in the case of tenements situated in a private close or place unless a water pipe of the District Committee shall have been laid within one hundred yards of the entrance to such close or place or unless the District Committee shall have become bound by virtue of a requisition and agreement made and executed in the manner and to the extent

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required by the Waterworks Clauses Act 1847 to cause pipes to be laid down within the said distance of one hundred yards of such premises Provided further that such agreement shall be for ten successive years at least. A.D. 1913.

54. For the purpose of providing for the better distribution of the water supply among the inhabitants the District Committee in addition to the powers conferred by the Public Health Acts may require the owner of any dwelling-house or tenement of dwelling-houses not properly supplied with water in any street within the limits of supply in which the pipes of the District Committee are laid within one hundred yards from such dwelling-house or tenement of dwelling-houses to take a supply of water for such house or tenement by connecting a service or communication pipe with the main pipe of the District Committee in any such street (such connexion to be made by the District Committee or some person to be employed by them at the expense of the owner) and to provide lay and maintain in good and sufficient repair such service or communication pipes stand-pipes or taps cisterns and other means and apparatus and in such positions as shall appear to the District Committee to be necessary for that purpose and in the event of refusal or delay on the part of such owner to comply with such requisition within one month after the date on which such requisition is given it shall be lawful for the District Committee or persons employed by them after twenty-four hours' notice in writing to enter such house or tenement and premises connected therewith between the hours of nine in the morning and five in the afternoon and to provide lay and maintain such service or communication pipes stand-pipes or taps cisterns and other means and apparatus in such positions as aforesaid and to recover the expense thereof from such owner in the same manner as rates or charges are recoverable by the District Committee under this Order and the Waterworks Clauses Acts 1847 and 1863 Provided always that in the case of houses not exceeding five pounds of yearly rent or value such owner shall not be required to introduce water into each house if such means of supply has been provided for each tenement of houses as the District Committee may reasonably deem necessary Provided also that in case of any question or difference arising between the District Committee and the owner of any house or tenement with respect to the necessity

Owners to
provide and
maintain
service
pipes.

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A.D. 1913. for such supply being provided for such house or tenement or with respect to the number or description of service or communication pipes stand-pipes or taps cisterns or other means and apparatus necessary for the purpose aforesaid the same shall be determined and fixed by the sheriff on summary application by either of the parties and the decision of the sheriff shall be final and not subject to review.

Byelaws for preventing waste &c. of water.

55.—(1) The District Committee may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(2) Such byelaws shall apply only in the case of premises to which under this Order the District Committee are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) In case of the failure of any person to observe such byelaws as are for the time being in force the District Committee may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the District Committee as the water rates in respect of the premises are recoverable.

(4) The provisions as to byelaws to be made by a local authority contained in sections 183 to 188 of the Public Health (Scotland) Act 1897 shall apply to byelaws made by the District Committee under this section.

Certain special water supply districts abolished.

56. The special water supply districts of Thornton Kinglassie and Coaltown of Balgonie situate within the Kirkcaldy District and each of them shall as from and after the first term of Whitsunday or Martinmas after the works authorised by the

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Order of 1910 and this Order are furnishing a supply of water or at such earlier date as the domestic water rate authorised by this Order may be imposed be deemed to have ceased to exist as a special water supply district and shall cease to be assessed for the purposes of water supply separately from other parts of the Kirkcaldy District but each such special water supply district shall thenceforth be for all purposes part of the Kirkcaldy District and the waterworks situate within or used exclusively for supplying each such special water supply district shall be part of the undertaking as if the same had been constructed under this Order Provided always that any debt which may affect any such special water supply district so ceasing to exist as such shall from and after such term aforesaid form a charge upon the undertaking. A.D. 1913.

57. The following provisions for the protection of the Trustees shall unless otherwise agreed upon between the District Committee and the Trustees apply and have effect (that is to say):— For protection of Trustees.

- (1) The District Committee shall on the storage reservoir (Reservoir No. 1) authorised by the Order of 1910 being filled and the main pipe (Conduit No. 2) authorised by that Order being completed up to Carriston Reservoir supply in perpetuity by meter to the Trustees such daily quantity of water in bulk up to four hundred thousand gallons per diem as the Trustees may from time to time in writing to the District Committee demand for use within the limits of compulsory supply of the Trustees Provided that the Trustees may if they see fit after six months' previous notice as aforesaid increase the quantity of water to be taken by them in any one day by such further quantity up to two hundred thousand gallons as they may demand for such period and to such quantity as shall be specified in such notice but not so as to exceed a total daily quantity of six hundred thousand gallons Provided further that in the event of the District Committee having water to spare of which they shall be the sole judges they shall supply to the Trustees such further quantity of water in addition to the aforesaid total daily quantity of six hundred thousand gallons as the Trustees may demand

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on such terms as may be agreed upon or failing agreement be determined by arbitration as herein-after in this section provided :

(2) In consideration of the right herein-before conferred upon the Trustees to demand from the District Committee a daily supply of water up to four hundred thousand gallons per diem as aforesaid the Trustees shall pay to the County Council by half-yearly instalments the sum of three thousand pounds per annum for the period of five years as from the date on which the District Committee shall by means of the works aforesaid be in a position to afford such daily supply as may be demanded by the Trustees and after that period an annual payment equal to one-fifth part of the annual deficit on the undertaking. The expression "annual deficit" means the sum remaining after the deduction from the expenditure on revenue account in connexion with the undertaking of the County Council and the District Committee in each year of the revenue other than the revenue received in each year from the domestic water rate the public water rate and from the Trustees under this section :

(3) The price to be paid by the Trustees to the County Council for such further supply of water as may be delivered to the Trustees in excess of the four hundred thousand gallons shall be an annual payment not exceeding one-tenth part of the annual deficit as herein-before defined equal to such proportion of such annual deficit as the quantity of water so taken by the Trustees during any year in excess of the four hundred thousand gallons per diem bears to the total quantity of water not exceeding two million gallons per diem which the works to be constructed by the District Committee for the conveyance of water from the reservoir (Reservoir No. 1) authorised by the Order of 1910 are capable of supplying during the same year. The water so taken by the Trustees in excess of four hundred thousand gallons per diem shall be ascertained by adding together the quantities taken in excess of four hundred thousand gallons in each

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and every day during the year in which the quantity taken exceeds four hundred thousand gallons : A.D. 1913.

- (4) The price to be paid by the Trustees in terms of the two immediately preceding subsections shall be paid to the County Council to the extent of one thousand five hundred pounds at the term of Martinmas in the year for which the supply is given and the balance of said price shall be paid by the Trustees to the County Council at the term of Whitsunday thereafter :
- (5) The County Council shall on or before the first term of Whitsunday or Martinmas occurring six months after the commencement of this Order pay to the Trustees in respect of the costs charges and expenses incurred by them of and incidental to the preparing for obtaining and confirming the Order of 1910 a sum equal to two-thirds but not exceeding five thousand three hundred pounds of such costs charges and expenses :
- (6) In the event of the District Committee taking water from the pipes or mains of the Trustees under the section of this Order whereof the marginal note is "Power to District Committee to take water from Conduit No. 2 authorised by Order of 1910" or by arrangement the District Committee shall make payment to the Trustees for the use of such pipes or mains of such annual sum as may be agreed upon between the District Committee and the Trustees or failing agreement be determined by arbitration as herein-after in this section provided :
- (7) If any difference shall arise between the District Committee and the Trustees under this section such difference shall be referred to the decision of an arbiter to be mutually chosen or failing agreement to be appointed by the Board of Trade on the application of either party and the decision of such arbiter shall be final.

FINANCIAL.

58. The District Committee shall and they are hereby authorised and required once in every year on or before the fifteenth District Committee to estimate

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A.D. 1913. day of August to lodge with the clerk to the County Council
annual sums an estimate of the expenses incurred or to be incurred for the
required. purposes of the undertaking and water supply under the Order
of 1910 and this Order and of the water revenues other than
assessments for and during the year next ensuing the fifteenth
day of May then last past including the sums necessary for pay-
ment of interest on and repayment of principal of any money
borrowed for providing such supply.

County
Council to
assess and
levy domes-
tic water
rate.

59. The estimate to be made up in manner before provided shall be submitted to the finance committee of the County Council who shall revise the same and submit the estimate so revised to the County Council at their meeting in the month of October in each year and the County Council may and they are hereby authorised and required annually to impose and levy an assessment (to be called "the domestic water rate") upon all lands and heritages within the limits of supply at such rate in the pound as shall be sufficient when supplemented by the public water rate (if any) after mentioned and the other water revenues received under the powers of this Order to defray the expenses referred to in the immediately preceding section. Provided that as regards all persons who shall be the owners or occupiers of any dwelling-houses railway stations or other buildings (other than tenements situated in a private close or place) they shall not be liable to be assessed in respect thereof for the domestic water rate unless such dwelling-houses railway stations or other buildings shall have been actually supplied with water under this Order or unless some pipe of the District Committee or through which the District Committee is entitled to give a supply to such premises shall be laid down within one hundred yards of the same measuring from the outer wall of such dwelling-houses railway stations or other buildings or of any domestic offices in contact with and occupied as appurtenances of such dwelling-houses railway stations or other buildings and that as regards the owners or occupiers of tenements situated in a private close or place they shall not be liable to be assessed in respect of such tenements for the said domestic water rate unless such tenements shall have been actually supplied with water under this Order or unless some pipe of the District Committee or through which the District Committee is entitled to give a supply to such premises shall be laid down within one hundred yards of the entrance to such close or place or the nearest part thereof:

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Provided also that no agricultural lands shall be assessed for the domestic water rate unless some pipe of the District Committee shall be laid down within one hundred yards measuring as aforesaid from the nearest part of some dwelling-house or dwelling-houses or domestic offices in contact therewith and occupied as appurtenances thereof and then only in respect of the annual value of such dwelling-house or dwelling-houses together with any domestic offices and garden policy or pleasure ground occupied in connexion therewith and in any case in which the annual value of such dwelling-house or dwelling-houses and pertinents is not entered in the valuation roll separately from that of the remainder of the subject of which it is a part or pertinent the County Council shall subject to the right of appeal to the sheriff by any person aggrieved apportion to the said dwelling-house or dwelling-houses and pertinents its or their due proportion of the annual value of the entire subject as entered in the valuation roll and for the purpose of assisting them in making any such apportionment the County Council may employ any surveyor or other skilled person All such apportionments shall on or before the twenty-fifth day of October annually be intimated by the County Council through their clerk to the party or parties liable for the domestic water rate and such party or parties in the event of his or their appealing to the sheriff against such apportionment shall lodge such appeal and shall give to the clerk of the County Council notice thereof on or before the fifth day of November following and the appeal (unless the same is withdrawn) shall be prosecuted and the sheriff's decision thereon obtained as soon as possible thereafter which decision shall be final but any supply of water obtained for such dwelling-houses and pertinents shall be used for domestic purposes only :

Provided that the annual value of the following lands or premises shall for the purposes of the domestic water rate be held to be one-fourth of the annual value thereof entered in the valuation roll viz. :—

- (1) All lands and premises used exclusively as a canal or basin of a canal or towing-path for the same or as a railway or tramway excepting the stations depôts and buildings which shall be assessable to the same extent as other lands and premises within the limits of supply :

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(2) All waterworks gasworks electric power or electric supply works and underground or other pipes of any water company gas company electric power or electric supply company corporation or commissioners :

(3) All mines minerals and quarries.

In this section "agricultural lands" means any lands and heritages used for agricultural or pastoral purposes only or as market gardens orchards allotments woodlands parks gardens or pleasure grounds or lands kept or preserved mainly or exclusively for sporting purposes.

Public
water rate
to be levied.

60. The County Council may if they shall think fit annually impose and levy an assessment (to be called "the public water rate") upon all lands and heritages within the limits of supply but such assessment shall not exceed threepence in the pound and may be of such less amount as the County Council may from time to time determine.

Minimum
water rate.

61. The District Committee shall not be obliged to furnish a supply of water to any person for any less sum than five shillings in any one year.

As to mode
of levying
and re-
covering
assess-
ments.

62. The assessments or rates by this Order authorised shall be deemed to be assessments authorised by the Public Health Acts and shall not exceed the rates in the pound set forth in section 137 of the Public Health (Scotland) Act 1897 which section shall apply as if the same were expressly incorporated herein and the said assessments or rates shall be imposed and levied and be payable and may be recovered in the same manner as nearly as may be as assessments under the provisions of the said Acts and for the purposes of the said assessments the limits of supply shall be deemed to be a special water supply district.

Application
of rates and
charges.

63. The County Council shall after making provision for—

- (1) The expenses of collection ;
- (2) The payment of interest on the moneys borrowed by them under this Order ;
- (3) The repayment by instalments or otherwise of money from time to time borrowed or the setting apart of the sinking fund in accordance with the provisions of the Act of 1889 and of this Order ;

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pay over the balance of the several assessments or rates levied and other revenue (if any) received by them under the authority of this Order to the District Committee as the District Committee may from time to time require and the District Committee shall apply the same for the purposes of the water supply under this Order.

A.D. 1913.

64. If the County Council shall find it necessary in any financial year to make payments in connexion with the current annual expenditure for the purposes of this Order in anticipation of the rates under this Order applicable to the expenditure of such year they may without any consent borrow from any incorporated or joint stock bank or other company or person on such terms and conditions and in such form as may be agreed on between the parties money on the security of the rates levied or to be levied for the financial year then current in so far as payment of the same has not been received but not to an amount greater than one half of the total aggregate sum levied for the preceding year and when any money has been so borrowed on the security of the rates of any financial year it shall not be competent to borrow on the security of the rates of any other year until the money borrowed as aforesaid shall have been paid off the provisions of this section however being without prejudice and in addition to the powers of borrowing conferred by or referred to in the sections of this Order the marginal notes whereof are respectively "County Council may pay interest and instalments of debt and charge same against water rates when leviable" and "Power to County Council to borrow."

Power to borrow in anticipation of current year's revenues.

65. All payments penalties and forfeitures exigible under the provisions of this Order and of the Acts wholly or partially incorporated herewith (excepting any penalties which may be imposed upon the District Committee) shall under deduction of any expenses of prosecution incurred and not otherwise recovered be paid over to the District Committee and applied for the purposes of this Order.

Application of penalties.

66. Until the District Committee are supplying water for domestic purposes from the works which they are by this Order and the Order of 1910 authorised to construct or from some of such works the County Council may from time to time pay all interest and instalments of principal as the same respectively may become due and require to be paid or set

County Council may pay interest and instalments of debt and charge same against

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—
water rates
when
leviable.

aside in respect of the moneys borrowed under this Order in respect of such works and shall accumulate such payments with interest at such rate as the County Council may determine not exceeding four per centum per annum and shall charge the same against the rates leviable by them under this Order and when and so soon as the domestic water rate authorised by this Order shall become leviable the County Council may and they are hereby authorised and required from time to time to levy that rate to such an increased annual amount as when supplemented by the public water rate (if any) may be required to repay any moneys so accumulated by them as aforesaid within such period from the date of borrowing as they may determine not exceeding the respective periods specified in the section of this Order whereof the marginal note is "Periods for repayment of borrowed moneys" and the moneys so accumulated shall be deemed to be capital expenditure for the purposes of this Order.

Power to
County
Council to
borrow.

67. The County Council may subject to the provisions of this Order in the manner and under the powers of the Act of 1889 from time to time borrow the sums following:—

(A) For works to be constructed by the District Committee authorised by the Order of 1910—

(1) For the purchase of lands and servitudes the sum of thirteen thousand nine hundred pounds;

(2) For storage reservoirs the sum of thirty-six thousand five hundred pounds;

(3) For service reservoirs tanks and filters the sum of fifteen thousand pounds;

(4) For trunk conduits mains and catchwaters the sum of eighty-one thousand five hundred and twenty-five pounds;

(5) For roads of access the sum of three thousand pounds;

(6) For subsidiary works the sum of five thousand pounds:

(B) For works to be constructed under this Order—

(7) For the purchase of lands and servitudes the sum of one thousand five hundred pounds;

(8) For service reservoir tank and pumping station the sum of nine thousand seven hundred pounds;

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(9) For trunk conduits and mains the sum of A.D. 1913.
three thousand six hundred and fifty pounds; —

(10) For road of access the sum of eight hundred
and thirty pounds;

(11) For subsidiary works and tramroad the sum
of eighteen thousand six hundred and twenty
pounds:

(c) For the following purposes—

(12) For the purpose of paying the sum which
under this Order may be payable by them to the
Trustees and for the payment of the costs charges
and expenses of and incidental to obtaining and
confirming this Order the sums requisite for those
purposes:

(13) For the purposes of the undertaking with
the consent of the Secretary for Scotland but not
otherwise such further moneys as the County
Council may require and the Secretary for Scotland
shall have and may exercise in relation to such
consent as aforesaid all the powers of section 93
of the Act of 1889:

And the County Council may make and grant mortgages or
other securities of the water assessments and rates rents and
charges in the manner authorised by the Act of 1889 in security
of the money so borrowed and interest thereon and any sums so
to be borrowed may be borrowed on terms of the repayment
thereof by annuity instalment or otherwise.

68. The County Council shall pay off all moneys to be Periods for
borrowed by them under this Order for the purposes of the repayment
undertaking within the respective periods following (that is to of borrowed
say):— moneys.

As to moneys borrowed for the purposes (1) (2) and (7)
mentioned in the immediately preceding section of this
Order within sixty years from the date or dates of
borrowing the same:

As to moneys borrowed for the purposes (3) and (8) mentioned
in that section within fifty years from the date or dates
of borrowing the same:

As to moneys borrowed for the purposes (4) and (9) mentioned
in that section within thirty-five years from the date or
dates of borrowing the same:

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As to moneys borrowed for the purposes (5) (6) (10) and (11) mentioned in that section within thirty years from the date or dates of borrowing the same :

As to moneys borrowed for the purposes (12) mentioned in that section within five years from the commencement of this Order :

As to moneys borrowed with the approval of the Secretary for Scotland for the purposes (13) mentioned in that section within such period as the Secretary for Scotland may notwithstanding anything in the Act of 1889 contained prescribe.

Application
of moneys
borrowed.

69. The sums borrowed by the County Council under the authority of this Order shall be paid to the District Committee as the District Committee may from time to time require and the sums so borrowed shall be applied by the District Committee only to purposes to which capital is properly applicable.

Prosecution
of offences.

70. All offences against the provisions of this Order or of any of the Acts incorporated herewith or against any of the byelaws of the District Committee may be prosecuted and all penalties and forfeitures in respect of offences against any of such provisions or byelaws may be recovered by and in the name of the District Committee under the Summary Jurisdiction Acts.

Form of
mortgage.

71. All mortgages to be granted by the County Council for the purposes of this Order and transferences or assignments and discharges thereof may be in the forms contained in the Second Schedule to the Public Health (Scotland) Act 1897 with such modifications as may be required to suit the circumstances of the case.

Manner in
which mort-
gages to be
executed.

72. Every mortgage to be granted by the County Council for the purposes of this Order shall in addition to being sealed be signed by two of the members of the County Council and the county clerk. Provided always that no county councillor or official holding office under the County Council shall by his subscription of any such mortgage be or be held to have rendered himself individually or personally liable for the payment of any money so borrowed or any interest thereon or of any sums whatsoever in respect thereof.

Transfer of
mortgages.

73. Any person entitled to any such mortgage may transfer his right and interest therein to any other person and every

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such transfer shall be by deed or by indorsation on the mortgage duly stamped wherein the consideration shall be truly stated. A.D. 1913.

74. If any such mortgage be transmitted by reason of the bankruptcy of the person entitled thereto there shall be produced to the County Council official evidence of such bankruptcy and of the vesting of the bankrupt estate in the trustee official assignee or other persons to whom such estate shall be transferred. Transmission of mortgages in case of bankruptcy.

75. All mortgages and all moneys advanced and lent on the security of the assessments rates rents and charges under this Order shall be moveable or personal estate and transmissible as such and shall not be of the nature of heritable or real estate. Mortgages of rates to be personal estate.

76. Any person entitled to any mortgage granted by the County Council under the authority of this Order may discharge the same and his right and interest therein in favour of the County Council and every such discharge may be written on the mortgage and such discharge when signed by the person entitled to such mortgage shall be valid and effectual to all intents and purposes. Discharge of mortgages.

77. No person lending money to the County Council shall be bound to inquire as to the observance by the County Council of any provision of this Order or be bound to see to the application or be answerable for any loss or non-application of such money or any part thereof. Protection of lender from inquiry.

78. Sections 68 69 and 70 of the Act of 1889 relating to accounts and audit shall apply to the accounts of the County Council (including those of the District Committee) under the provisions of this Order and to the audit of such accounts. Audit of accounts.

79. Section 168 of the Public Health (Scotland) Act 1897 relating to exemption from stamp duties shall apply to all bonds assignations conveyances instruments agreements receipts or other writings made or granted by or to or in favour of the County Council or the District Committee under this Order. Exemption from stamp duties.

80. Except in so far as expressly provided nothing in this Order shall prejudice or affect the powers rights and liabilities of the County Council and the standing joint committee with regard to capital works rating and borrowing. Saving for County Council and standing joint committee.

81. The costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in Costs of Order.

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A.D. 1913 relation thereto together with such sum as may under this Order be payable by the County Council to the Trustees and the costs charges and expenses of the opposition of the County Council to the Order of 1910 shall be paid by the County Council out of the assessments or rates to be levied or out of the moneys to be borrowed under the authority of this Order or out of any other moneys which the County Council may legally under this Order apply to such purposes.

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The SCHEDULE referred to in the foregoing Order.

A.D. 1913.

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MINUTE OF AGREEMENT between THE PROVOST MAGISTRATES AND COUNCILLORS OF THE BURGH OF BUCKHAVEN METHIL AND INNERLEVEN for themselves and on behalf of the Trustees to be incorporated under the Provisional Order herein-after mentioned (and herein-after referred to as "the Trustees") of the one part and THE COUNTY COUNCIL OF THE COUNTY OF KINROSS incorporated under the Local Government (Scotland) Act 1889 (herein-after called "the County Council") of the other part.

WHEREAS under the provisions of the Private Legislation Procedure (Scotland) Act 1899 a draft Provisional Order (herein-after referred to as "the Order") was on the seventeenth day of December nineteen hundred and eight deposited with the Secretary for Scotland intituled "Draft Provisional Order to incorporate a public Trust for better supplying with water the parish of Wemyss including the burgh of Buckhaven Methil and Innerleven and districts and places adjacent to abolish the special water supply districts of Wemyss of Buckhaven Methil and Innerleven and of Windygates and Balcurvie to transfer the existing waterworks to the Trustees to be incorporated to sanction the construction and maintenance of new and additional waterworks and for other purposes":

And whereas the Trustees inter alia are desirous of laying certain conduits or water mains in and along the roads in the county of Kinross under the control and management of the County Council:

And whereas the County Council desire to have provision made for a certain quantity of water to be supplied at Scotlandwell and districts thereto adjoining and that the work of laying the pipes should be done subject to certain terms and conditions herein-after recited:

Therefore the parties hereto do subject to the approval of the Secretary for Scotland and of Parliament hereby agree with each other and oblige themselves to each other as follows videlicet:—

First The Trustees shall subject to this agreement supply when and so long as requested by the County Council water for domestic purposes to any house or shop in East and West Balgedie Kinnesswood and Scotlandwell such water to be supplied at a yearly charge payable in advance by the owner and occupier of such house or shop so supplied under this agreement in equal proportions and at the rate of

[Ch. clxix.] *Kirkcaldy District Water Order* [2 & 3 GEO. 5.]
Confirmation Act, 1913.

A.D. 1913. — twopence per pound above the rate levied for the time being in the compulsory area according to the annual rent or value of the said house or shop as entered in the valuation roll of the county of Kinross and for this purpose at the expense of such owner or occupier at the sight and to the satisfaction of the Trustees there shall be provided fixed and maintained all such communication pipes and other pipes connexions and apparatus as may be necessary for taking the water so to be supplied from the conduit or main pipe of the Trustees adjacent to such house or shop but the occupier shall be entitled on payment of the costs and charges of such pipes and connexions to deduct from his rent the amount so paid by him.

The Trustees shall also supply a hydrant for supplying water for the purpose of road watering at Southfield Cuthil Muir on the Great North Road. In the event of a special water district being formed and provided with a water supply from the Trustees the County Council shall levy assess and collect pay and hand over the amount payable to the Trustees subject to a reasonable charge for collection.

Second. The obligations to supply water under the preceding article of this agreement shall not prejudicially affect or restrict the supply of water from time to time required for all purposes within the limits of compulsory supply and the quantity of water which the Trustees may be called upon to supply for domestic use under this agreement shall not exceed ten thousand gallons in any one day but subject to the foresaid qualifications the Trustees shall be bound to give to consumers an adequate supply for domestic use but shall not be obliged for the purposes of this agreement to check valves on any water main of the Trustees to afford a supply of water above the hydraulic gradient.

Third. The Trustees hereby bind and oblige themselves to execute the works in connexion with the laying of the pipes in the said roads with the least inconvenience to the public and in such a manner as not to stop the traffic thereon nor shall more than one hundred yards of said roads be opened at one time and the Trustees shall take all necessary and usual precautions for the safety of the public and they hereby bind themselves to relieve the County Council of all claims for damages for personal injuries or otherwise that may be caused by their failure to provide all such necessary and usual precautions or arising in any way through their fault. The Trustees shall be bound to restore the road or roads so far as affected by such operations and by the extraordinary traffic of the Trustees in the way of carting material for their operations or otherwise along said road to their former conditions and it is hereby agreed that the County Council through their road surveyor Mr. Humphreys or his successors shall repair level and where necessary metal so much of the road as may have been disturbed and charge the expense thereof against the

[2 & 3 GEO. 5.] *Kirkcaldy District Water Order* [Ch. clxix.]
Confirmation Act, 1913.

Trustees In the event of the Trustees and the County Council or their engineers respectively W. Tait Esq. C.E. Edinburgh and Mr. Humphreys differing in regard to the cost of the repairs executed then it is hereby provided and declared that it shall be competent for either party to refer to the sheriff the matter or matters in dispute and it is also stipulated and agreed between the parties that the Newhill Road shall not be used by the Trustees or their contractors acting under them for the conveyance of material used in the construction of the reservoir at Glenfarg or otherwise in connexion with their operations. A.D. 1913.

Fourth In the event of any difference of opinion arising as to matter embodied in this agreement or the carrying out of the same such difference shall be referred to an arbiter to be mutually chosen by the parties to this agreement or failing this agreement to an arbiter to be named by the Local Government Board for Scotland and the decision of such arbiter shall be final and the due fulfilment of the same shall be binding on the parties to such reference.

Lastly Both parties consent to the registration hereof and of all decrees arbitral interim or final to follow hereon for preservation and execution.

In witness whereof

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